

Legitimacy of the Judicial Branch

“The Supreme Court, of course, has the responsibility of ensuring that our government never oversteps its proper bounds or violates the rights of individuals. But the Court must also recognize the limits on itself and respect the choices made by the American people.”

—Justice Elena Kagan, Senate Confirmation Hearing, 2010

Essential Question: How has the Supreme Court’s use of judicial review in conjunction with life tenure led to debates about the legitimacy of the court?

Supreme Court and lower court rulings can have considerable consequences for Americans. When those consequences are undesired, critics of courts express reasons to question its legitimacy. Life tenure, broad federal jurisdiction, a judge’s ideology, and unfavorable decisions lead some to distrust the power of the courts.

Common Law and Precedent

Courts follow a judicial tradition begun centuries ago in England. Common law refers to the body of court decisions that make up part of the law. Court rulings often establish a **precedent**—a ruling that firmly establishes a legal principle. These precedents are generally followed later as subordinate courts must and other courts will consider following. The concept of *stare decisis*, or “let the decision stand,” governs common law.

Lower courts must follow higher court rulings. Following precedent establishes continuity and consistency in law. Therefore, when a U.S. district court receives a case that parallels an already decided case from the circuit level, the district court is obliged to rule the same way, a practice called **binding precedent**. Even an independent-minded judge who disagrees with the higher court’s precedent knows an appeal of a uniquely different decision, based in similar circumstances, will likely be overruled by the court above. That’s why all courts in the land are bound by U.S. Supreme Court decisions.

Judges also rely on **persuasive precedent**. That is, they can consider past decisions made in other district courts or far away circuit courts as a guiding basis for a decision. Precedents can of course be overturned. No two cases are absolutely identical, which is precisely why judges make decisions on a

case-by-case basis. Also, attitudes and interpretations differ and evolve over time in different courts.

Supreme Court Precedents Establish Policy

The Supreme Court's authority of binding precedent combined with its power of judicial review (see Topic 2.8) has given it a strong hand in establishing national policy. Early on, it addressed national supremacy and states' rights. Later, it defined the relationship between government and industry. Most recently, the Court's historic impact has shaped individual rights and liberties.



Source: Library of Congress

The Supreme Court is the only federal court named in Article III of the Constitution, yet it did not operate in its own building—shown here in a drawing before it was built—until 1935.

Defining Federalism The Supreme Court in its fledgling years was a nondescript institution held in low esteem. President Washington appointed Federalist John Jay as the first chief justice. At first, the Court operated in a second-floor room in a New York building and convened for only a two-hour session. Several early justices didn't stay on the Court long. Jay resigned in 1795 after only six years.

The Court's reputation and role would soon change. Once President John Adams appointed Federalist John Marshall as chief justice, the Court began to assert itself under a strong, influential leader. Marshall, a Federalist and Father of the Supreme Court, remained on the Court from 1801 until his death in 1835. He helped create a united court that spoke with one voice. Marshall insisted that this brotherhood of justices agree and unite in their rulings to shape national law. In virtually every important case during his time, that one voice was Judge Marshall's. "He left the Court," Chief Justice William Rehnquist wrote years later, "a genuinely coequal branch of a tripartite national government . . . the final arbiter of the meaning of the United States Constitution." He fortified the Union and federal powers with rulings that strengthened national supremacy and Congress's commerce power.

During Marshall's tenure, the *McCulloch v. Maryland* (1819) and *Gibbons v. Ogden* (1824) rulings empowered Congress to create a bank and strengthened its power to regulate interstate commerce. With the *Marbury v. Madison* (1803) decision, the Court struck down part of the Judiciary Act and thereby exercised judicial review.

Continuity and Change Over Time

The Supreme Court is known more for continuity than for change. Membership is small, and justices serve long tenures. The Court’s customs are established through consensus and remain constant over generations. The contemporary group operates in many ways as earlier Supreme Courts did.

The combination of the *lifetime tenure* of justices and the Court’s exercise of judicial review has given rise to debates over the legitimacy of the Supreme Court. Some people believe, as Anti-Federalist Brutus expressed more than 200 years ago, that with no power to hold them accountable, the justices on the Supreme Court are too separated from the real sources of power—the people and the legislature—to be legitimate arbiters of democratic law. Brutus believed the Supreme Court justices would “be placed in a situation altogether unprecedented in a free country—totally independent. No errors they may commit can be corrected by any power above them, if any such power there be, nor can they be removed from office for making ever so many erroneous adjudications.”

Furthermore, the composition of the Court changes as seats become vacant, and the presidential appointments to fill them can lead to shifts in the ideology of the Court. These changes can result in the overturning of some precedents, calling into question the reliability and therefore legitimacy of Supreme Court decisions. Controversial and unpopular decisions can face a number of challenges.

CURRENT SUPREME COURT JUSTICES				
Current Justices	President	President’s Party	Senate vote	Prior Job
Clarence Thomas	G.H.W. Bush	Republican	52–48	DC Circuit
Ruth Bader Ginsburg	Clinton	Democrat	96–3	DC Circuit
Stephen Breyer	Clinton	Democrat	87–9	First Circuit
John Roberts, Chief Justice	G.W. Bush	Republican	78–22	DC Circuit
Samuel Alito	G.W. Bush	Republican	58–42	Third Circuit
Sonia Sotomayor	Obama	Democrat	68–31	Second Circuit
Elena Kagan	Obama	Democrat	63–37	Solicitor General
Neil Gorsuch	Trump	Republican	54–45	Tenth Circuit
Brett Kavanaugh	Trump	Republican	50–48	DC Circuit

Overturning Precedent

Precedent plays an important role in judicial decision-making. Rulings by higher courts bind lower courts to the same ruling. However, in 1932 Justice Brandeis wrote in a dissenting opinion in *Burnet v. Coronado Oil &*

Gas Co., “*Stare decisis* is usually the wise policy, because in most matters it is more important that the applicable law be settled than it be settled right.” This was especially true about rulings related to legislation, he argued, because errors in the Court’s decision could be corrected by Congress. However, on matters related to the application of the Constitution, which the legislature has no power to change, Brandeis noted that the Court has often reconsidered and overturned its own previous ruling if an earlier one was made in error.

Consider the precedents set in two important cases: *Plessy v. Ferguson* (1896) that enabled states to provide separate schools for students based on race, and the later *Brown v. Board of Education* (1954) ruling that reversed the same principle. (See Topic 3.11 for more on both cases.) Of course, a half century had passed and race and education were viewed differently at those two points.

More telling examples of the Court’s willingness to overturn precedent are seen in cases dealing with suffrage. The Court had ruled in 1935 in *Grovey v. Townsend* that the Democratic Party of Texas, as a private, voluntary organization, could determine its own membership rules. Even if those rules banned African Americans from voting in the primary, as the Constitution didn’t apply to this non-government institution. In the 1944 case of *Smith v. Allwright*, Lonnie E. Smith brought suit with a similar argument about his Fifteenth Amendment voting rights. The Court ruled in his favor and furthered the discussion of *stare decisis* versus overturning a precedent. “In reaching this conclusion, we are not unmindful of the desirability of continuity of decision in constitutional questions. However, when convinced of former error, this Court has never felt constrained to follow precedent. . . . *Grovey v. Townsend* is overruled.”

Why the dramatic shift in only nine years? By 1944, different justices occupied the seats on the Court, and, amid World War II, views changed on democracy, fairness, and equality.



THINK AS A POLITICAL SCIENTIST: DESCRIBE POLITICAL PRINCIPLES IN DIFFERENT SCENARIOS

Political principles are foundational concepts or ideas of government. Political scientists examine political principles in different scenarios to try to understand them as fully as possible. For example, one key principle of the judicial branch is to establish precedent, and the strength of the Supreme Court comes from this power. *Stare decisis*, or following precedent, is what binds lower courts to similar rulings. However, in different contexts, precedent may have different value. At times, a superior court can overturn precedent if it believes errors exist in previous decisions.

Practice: Read the scenarios on the next page and complete the tasks that follow.

Martin v. Hunter's Lessee (1816). Denny Martin, a British subject, had inherited land from his Loyalist uncle during the Revolutionary War. Virginia law stated property could be taken from Loyalists. The state seized the land, and Martin sued based on a federal treaty that had promised land returned to Loyalists after the war. Virginia's Supreme Court upheld the confiscation of land. Relying on the Constitution—Article III, Section 2, the supremacy clause—the Supreme Court reversed the decision and gave Martin's land back based on the idea federal treaties superseded state law.

Brown v. Board of Education (1954). A group of African American students (the Brown family was first alphabetically) sued because they had been denied access to certain public schools based on race. The case made it to the Supreme Court, where the Court ruled that "separate but equal" facilities are inherently unequal. The practice, established in the *Plessy v. Ferguson* (1896) case, violated the equal protection clause of the Fourteenth Amendment.

1. Explain the principle behind why the Supreme Court overturned Virginia's ruling in the *Martin* case.
2. Explain the precedent that was overturned in the *Brown* case.

The Supreme Court Today

When President George W. Bush replaced Chief Justice Rehnquist after his death with John Roberts (2005), the Court's membership had not changed for about 12 years. President Barack Obama appointed two women, Circuit Justice Sonia Sotomayor (2009), and U.S. Solicitor General Elena Kagan (2010). President Trump nominated Neil Gorsuch (2017) and Brett Kavanaugh (2018) as the Court's newest members.



Front row, left to right: Associate Justice Stephen G. Breyer, Associate Justice Clarence Thomas, Chief Justice John G. Roberts, Jr., Associate Justice Ruth Bader Ginsburg, Associate Justice Samuel A. Alito. Back row: Associate Justice Neil M. Gorsuch, Associate Justice Sonia Sotomayor, Associate Justice Elena Kagan, Associate Justice Brett M. Kavanaugh

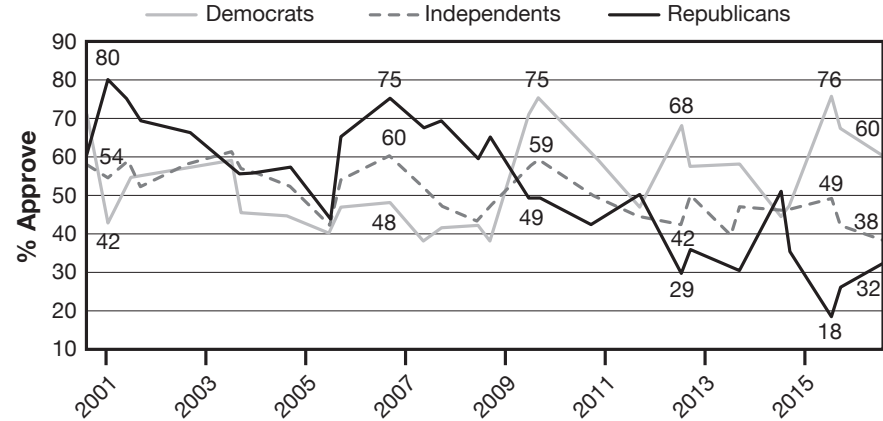
Credit: Fred Schilling, Collection of the Supreme Court of the United States.

Ideology The Rehnquist Court and the current Roberts Court have been difficult to predict. The conservative and liberal wings had been balanced by the swing votes of Justices O'Connor and Kennedy. Swing votes are those often tie-breaking votes cast by justices whose opinions cannot always be easily predicted. For the past decade or so, most experts have been quick to characterize the Court as leaning conservative. However, the Court has limited states' use of the death penalty and upheld government's eminent domain

authority for economic development. With Justice Kavanaugh as Kennedy’s replacement, the direction of the Court is uncertain.

Chief Justice **John Roberts** has guided the Court with judicial minimalism. “Judges and justices are servants of the law, not the other way around. Judges are like umpires,” he said during his confirmation hearing. “Umpires don’t make rules; they apply them . . . nobody ever went to a ball game to see the umpire.” Robert’s operation takes fewer cases, while the conversations and conferences go longer. He has achieved more unanimity in decisions than some previous chief justices and has written more narrow opinions to address the questions before the Court.

Supreme Court Job Approval, by Political Party



Source: Gallup

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How has the Supreme Court’s use of judicial review in conjunction with life tenure led to debates about the legitimacy of the court? On separate paper, complete a chart like the one below.*

Continuity or Change of the Supreme Court	Effect on Legitimacy of the Court

KEY TERMS AND NAMES

binding precedent	Roberts, John
persuasive precedent	stare decisis
precedent	

The Court in Action

“John Marshall has made his decision, now let him enforce it.”

—President Andrew Jackson, on the
Worcester v. Georgia decision, 1832

Essential Question: How have changes in the Supreme Court over time led to debates about the legitimacy of the court?

President Jackson didn’t believe the Supreme Court had the final interpretation on matters of national interest, as the quote above attributed to Jackson suggests. This disagreement was not the only instance when the United States experienced a conflict between the branches of government. These conflicts can lead to questions about the legitimacy of the courts. Federal judges are appointed for life, directly unaccountable to any voter. The Supreme Court is often challenged when it renders unpopular decisions as well. Yet, it has created a lasting legacy with precedents it has set and law that it has shaped.

An Evolving Court

Since the Marshall Court, the Supreme Court’s rulings have both caused and reflected changes in society because of the individual justices who have come and gone. Yet the Supreme Court has experienced more continuity than change. The Court’s customs are established through consensus and remain over generations.

Early Courts to the New Deal

Chief Justice Roger Taney replaced John Marshall. The Court’s operation changed somewhat with new leadership and new members. In 1837, Congress increased its membership to nine justices to ease the workload and created additional circuits. It also took up questions regarding slavery during the antebellum period. Taney and his fellow justices were determined to protect slavery as a state’s right and upheld the congressional Fugitive Slave Act of 1850.

In 1857, as the North and the South grew further apart, the Court decided the Dred Scott case. The slave Dred Scott had traveled with his master into free territory and claimed, with the help of abolitionist lawyers, that having lived in free northern territory, he should have his freedom. Taney and the Court’s

majority shocked abolitionists with their decision and left one of the Court's worst legacies. The *Dred Scott v. Sandford* ruling held that Scott wasn't even a citizen and thus had no legal right to be a party in federal court, much less the country's top tribunal. The Court went further, stating that a slave owner's constitutional right to due process and property prevented government from depriving him of that property, regardless of where he traveled. Abolitionists and anti-slavery advocates in the territories immediately challenged the Court's legitimacy.

Corporations and the State

In the late 1800s, the Court examined concerns over business, trade, and workplace regulations as the nation had experienced vast economic expansion during the Industrial Revolution. Congress and state legislatures attempted to address the unfair and unsafe working conditions while facing strong resistance from business leaders who argued for more of a *laissez-faire*, or minimal government regulation, approach. When pressed by corporations to toss out worker protection laws, the Court had to decide two principles: what the Constitution permitted government to do and which government—state or federal—could do it.

The Court began to overturn various state health, safety, and civil rights laws, and in so doing, it shaped social policy. It threw out a congressional act that addressed monopolies. It also ruled Congress's income tax statute null and void. By the turn of the century, the Court had developed a conservative reputation as it questioned business regulation and progressive ideas. In *Lochner v. New York* (1905), the Court overturned a New York state law that prevented bakers from working more than 10 hours per day. The law was meant to counter the long hours required in an era before overtime pay.

During the Progressive Era, the Court made additional exceptions but quickly returned to a conservative, **strict constructionist** view of business regulation. A strict constructionist interprets the Constitution in its original context, while a **liberal constructionist** interprets the Constitution as a living document and takes into account changes and social conditions since ratification. The Court held that Congress could not use its commerce power to suppress child labor. The Court's conservative viewpoint turned further to the right, taking social policy with it, when former president William Howard Taft became chief justice. It ruled that minimum wage law for women also violated liberty of contract.

The New Deal and Roosevelt's Plan During the Depression, the Court transformed. Charles Evans Hughes replaced Taft as chief justice in 1929. Hughes managed a mixed group with four strong conservatives, nicknamed the "Four Horsemen," who overturned several New Deal programs. The Court struck down business regulations, invalidated the National Recovery Act (1933), and ruled against New York's minimum wage law.

After his 1936 landslide re-election, Franklin Roosevelt (FDR) responded to the rebuffs of the conservative Court by devising a plan to "pack the Court."

He proposed legislation to add one justice for every justice then over the age of 70, which would have allowed him to appoint up to six new members. FDR claimed this would relieve the Court's overloaded docket, but in reality he wanted to dilute the power of the conservative majority who had been unreceptive to his New Deal proposals. The sitting Court denied any need for more justices. Conservatives and liberals alike believed such a plan amounted to an attack on the Court's independence. Members of the Senate Judiciary Committee said, "The bill is an invasion of judicial power such as has never before been attempted in this country."

The Court changed ideologically, however, when one of the conservatives took an about-face in *West Coast Hotel v. Parrish* (1937), which sustained a Washington state minimum wage law. Justice Owen Roberts became "the switch in time that saved nine," meaning that there was no longer any need to try to pack the Court with additional justices. After the *West Coast Hotel* decision, the Court upheld every New Deal measure that had come before it. Roosevelt pressed ahead with more legislation, including a national minimum wage that has withstood constitutional scrutiny ever since. Winning four elections, he was able to appoint nine new justices to the Court who were friendly to his policies before his death in 1944.

A Court Dedicated to Individual Liberties

In the post-World War II years, the Court protected and extended individual liberties. It delivered mixed messages on civil liberties up to this point—holding states to First Amendment protections while allowing government infringements in times of national security threats. For example, it upheld FDR's executive order that placed Japanese Americans in internment camps after the Japanese attack in 1941. (See Topic 2.6 for more about the 1944 *Korematsu v. United States* case.) After that, however, the Court followed a fairly consistent effort to protect individual liberties and the rights of accused criminals. The trend crested in 1973 when the Court upheld a woman's right to an abortion in *Roe v. Wade*. (See Topic 3.9.)

The Warren Court The Court extended many liberties under Chief Justice Earl Warren after President Dwight Eisenhower appointed him in 1953. As attorney general for California during the war, Warren oversaw the internment of Japanese Americans, and in 1948 he was the Republican's vice-presidential nominee. But any expectations that Warren would act as a conservative judge were lost soon after he took the bench.

Warren's legacy did not please traditionalists because his Court overturned state policies created by democratically elected legislatures. The controversial or unpopular decisions led some people to challenge the Court's legitimacy. Several Warren Court decisions seemed to insult states' political cultures and threaten to drain state treasuries. Some argued that Earl Warren should be impeached. The Warren Court had made unpopular decisions, but it had not committed impeachable acts—such as taking bribes or failing to carry out the job—so only justices' retirements or deaths could change the Court's makeup.

Warren Court—Civil Rights and Civil Liberties	
<i>Brown v. Board of Education</i> (1954)	Overturned the 1896 <i>Plessy v. Ferguson</i> decision, stating the “separate but equal” standard violated the Fourteenth Amendment’s equal protection clause. (See Topic 3.11.)
<i>Mapp v. Ohio</i> (1961)	Ruled that evidence illegally obtained would be inadmissible in court. (See Topic 3.8.)
<i>Engle v. Vitale</i> (1962)	Upheld the establishment clause of the First Amendment. Public school-sponsored prayer was unconstitutional. (See Topic 3.2.)
<i>Gideon v. Wainwright</i> (1963)	The court stated that all citizens must be provided a lawyer, even if they can’t afford one. (See Topic 3.8.)
<i>Miranda v. Arizona</i> (1966)	An arrest suspect had to be formally informed of his or her rights—sometimes called Miranda rights. (See Topic 3.8.)
<i>Tinker v. Des Moines Independent Community School District</i> (1969)	Allowed for students to participate in non-disruptive symbolic speech in schools. (See Topic 3.3.)

Cases in bold are required Supreme Court cases for this course.

The Burger Court President Richard Nixon won the 1968 election, in part by painting Warren’s Court as an affront to law enforcement and local control. When Warren retired, Nixon replaced him with U.S. appeals court justice Warren Burger. Burger by no means satisfied Nixon’s quest to instill a conservative philosophy and largely failed in judicial leadership. While lacking Warren’s leadership skills, Burger kept the Supreme Court on a somewhat similar path to the one Warren had begun.

In *Roe v. Wade*, Burger joined six others on the Court to outlaw or modify state anti-abortion laws as a violation of due process. With this ruling, a woman could now obtain an abortion, unconditionally, through the first trimester of pregnancy. He also penned a unanimous opinion to uphold lower-court-ordered school busing for racial enrollment balance.

The chief justice often couldn’t round up enough agreement to get a five-justice majority. Thus, cases went undecided while the Court took on additional ones. The justices became overworked and took as many as 150 appeals in a year. Supreme Court historian and former clerk Edward Lazarus refers to Burger as “an intellectual lightweight” who had “alienated his colleagues and even his natural allies.” By 1986, Burger had proven pretentious and chafing to his colleagues, and he had simply become tired. At the press conference announcing his retirement, a reporter asked him what he would miss most on the Court. Burger stalled, sighed, and said, “Nothing.”

The Rehnquist Court At the same press conference, President Reagan elevated Associate Justice William Rehnquist to the chief position. Based on Rehnquist’s strict constructionist views, President Nixon had nominated Rehnquist for the High Court. The Senate did not confirm him easily and

accused him of racism, as he had recommended upholding the “separate but equal” doctrine when clerking for a justice in the early 1950s en route to the *Brown* ruling. This same controversy arose in 1986 as he accepted the chief justice position.

Initially, Rehnquist found himself in dissent and all alone on several cases, earning him the nickname “the Lone Ranger.” When Rehnquist took over for Burger, however, additional strict constructionists soon joined him. He improved the conference procedures and decreased the Court’s caseload. All the justices, liberals and conservatives alike, welcomed the changes. In the 1990s, the Rehnquist Court upheld states’ rights to place limitations on access to abortions and limited Congress’s commerce clause authority. In addition to efficiency, Rehnquist had ushered in another ideological shift.

Legislating after Unfavorable Decisions

Many people believe the Supreme Court’s decision is final, but sometimes it is not. In many precedent-setting decisions, the High Court interprets language in the Constitution. That language can be subsequently changed through constitutional amendments.

The passage and ratification of the obscure Eleventh Amendment, which further defines court jurisdiction, was in response to the 1794 ruling in *Chisolm v. Georgia*. Anti-Federalists and states’ rights advocates had warned that the new federal courts might overpower the state courts, and they saw the decision in *Chisolm v. Georgia* as such an encroachment. South Carolina residents seeking to recoup war debts from Georgia’s government sued in federal court. Georgia denied the federal court’s authority and refused to show up. The Supreme Court ruled in *Chisolm* that federal courts had jurisdiction over such cases and opened the door for additional pending suits against other states. In response, Congress members, especially those from the states involved in the lawsuits, proposed the Eleventh Amendment. It prohibits the federal courts from considering certain lawsuits against states and excuses state courts from hearing some suits against the state, if based on federal law. The Eleventh Amendment is the only amendment to alter the judicial branch’s jurisdiction.

However, additional amendments that addressed the substance of law have been proposed and ratified as reactions to unfavorable Supreme Court decisions. For example, following the Civil War, the passage of the Fourteenth Amendment effectively overturned the Dred Scott decision by guaranteeing citizenship to those born in the United States and requiring states to afford their citizens “equal protection.”

Later in the 1800s, Congress passed a national tax on individual incomes. Because the language in Article I, Section 8 is unclear on the types of taxes Congress can create and the manner in which these are to be applied, the Court struck down the law. However, later in the Progressive Era, enough support for such a tax enabled Congress to propose and the states to ratify the Sixteenth Amendment (1913) to assure this power to create the national income tax.

Amending the Constitution is the surest way to get around a Supreme Court decision, but it is a difficult task. In recent years, movements have surfaced to amend the document to stop abortions, to prevent same-sex marriage, and to enable legislatures to criminalize flag burning—all attempts to overturn unpopular Supreme Court decisions— and all failed. A more practical path is for Congress or state legislatures to pass laws that the Supreme Court has declared unconstitutional in a slightly different form.

Implementation Courts decide principles and order citizens or government entities to take action or refrain from action. The executive branch must then enforce this law. On a basic, local level, a state judge may issue a restraining order, but the police must do any necessary restraining.

When a court orders, decrees, or enjoins (issues an injunction to) a party, it can do so only from the courtroom. Putting a decision into effect is another matter. Judges alone cannot implement the verdicts and opinions made in their courts. Nine robed justices in Washington simply cannot put their own decisions into effect. They require at least one of several other potential governing authorities—the president, U.S. marshals, regulatory agencies, the military, or other government agencies—to carry out their decisions. Legislatures may have to rewrite or pass new laws or finance the enforcement endeavor. The implementing branch, charged with putting a court’s decision into effect, doesn’t always cooperate with or follow court orders.

When the Supreme Court makes decisions, it assesses potential enforcement and cooperation. When John Marshall’s Court deemed that Georgia could not regulate Cherokee Indian lands in its state because such regulation was exclusive to the federal government, President Andrew Jackson strongly disagreed and allegedly said, “John Marshall has made his decision, now let him enforce it.” In the late 1950s, after the Court ruled that a Little Rock high school had to integrate, the executive branch sent federal troops to escort the claimants into the formerly all-white school.



THINK AS A POLITICAL SCIENTIST: COMPARE A REQUIRED SUPREME COURT CASE TO A NON-REQUIRED SUPREME COURT CASE

Louisiana passed the Separate Car Act in 1890, which required all railroads to have “separate but equal” accommodations for passengers based on race. Homer Plessy, who was one-eighth African American, challenged the law. District Court Judge John Ferguson ruled the law to be constitutional. The Supreme Court upheld his ruling and established the policy of “separate but equal,” which lasted for more than 50 years. The excerpt is from the majority opinion of Justice Henry Brown.

Practice: Review the *Marbury v. Madison* (1803) case in Topic 2.8. Then read the excerpt on the following page about the 1896 *Plessy v. Ferguson* case and complete the tasks that follow.

The constitutionality of this act [Separate Car Act] is attacked upon the ground that it conflicts both with the Thirteenth Amendment of the Constitution, abolishing slavery, and the Fourteenth Amendment, which prohibits certain restrictive legislation on the part of the States.

That it does not conflict with the Thirteenth Amendment. . . A statute which implies merely a legal distinction between the white and colored races — a distinction which is founded in the color of the two races and which must always exist so long as white men are distinguished from the other race by color — has no tendency to destroy the legal equality of the two races, or reestablish a state of involuntary servitude.

By the Fourteenth Amendment. . . The object of the amendment was undoubtedly to enforce the absolute equality of the two races before the law, but, in the nature of things, it could not have been intended to abolish distinctions based upon color, or to enforce social, as distinguished from political, equality, or a commingling of the two races upon terms unsatisfactory to either. Laws permitting, and even requiring, their separation in places where they are liable to be brought into contact do not necessarily imply the inferiority of either race to the other, and have been generally, if not universally, recognized as within the competency of the state legislatures in the exercise of their police power.

1. Describe the reasoning in the *Plessy* case that allowed “separate but equal.”
2. Explain one important similarity and one difference in the circumstances that led to both cases.
3. Explain how the Supreme Court used judicial review in its decision in each case.

How Cases Reach the Supreme Court

The Supreme Court is guided by Article III, congressional acts, and its own rules. Congress is the authority on the Court’s size and funding. The Court began creating rules in 1790 and now has 48 formal rules, as well as less formal customs and traditions that guide the Court’s operation. The Court has both original and appellate jurisdiction. Only in rare situations does the Supreme Court exercise original jurisdiction and thus serve as a trial court, typically when one state sues another over a border dispute or to settle some type of interstate compact.

As the nation’s highest appeals court, the Supreme Court takes cases from the 13 U.S. circuits and the 50 states. Two-thirds of appeals come through the federal system, directly from the U.S. circuit courts, because the Supreme Court has a more direct jurisdiction over cases originating in federal district courts than in state trial courts.

Like the circuit courts, the Supreme Court accepts appeals each year from among thousands filed. The petitioner files a **petition for certiorari**, a brief arguing why the lower court erred. The Supreme Court reviews this to determine if the claim is worthy and if it should grant the appeal. If an appeal is deemed worthy, the justices add the claim to their “discuss list.” They consider past precedents and the real impact on the petitioner and respondent. The

Supreme Court does not consider hypothetical or theoretical damages; the claimant must show actual damage. Finally, the justices consider the wider national and societal impact if they take and rule on the case. Once four of the nine justices agree to accept the case, the appeal is granted. This **rule of four**, a standard less than a majority, reflects courts’ commitments to claims by minorities.

Opinions and Caseload

Chief Justice John Marshall’s legacy of unanimity has vanished. The Court comes to a unanimous decision only about 30 to 40 percent of the time. Therefore, it issues varying opinions on the law. Once the Court comes to a majority, the chief justice, or the most senior justice in the majority, either writes the Court’s opinion or assigns it to another justice in the majority. Typically, those justices who write the **majority opinion**—reflecting the Court’s ruling—have expertise on the topic or are obviously passionate about the issue. Like a statute for Congress or an executive order for the president, a court ruling is the judicial branch’s contribution to the nation’s law. The majority opinion sums up the case, the Court’s decision, and its rationale.

Justices who differ from the majority can draft and issue differing opinions. Some may agree with the majority and join that vote but have reservations about the majority’s legal reasoning. They might write a **concurring opinion**. Those who vote against the majority often write a **dissenting opinion**. A dissenting opinion has no force of law and no immediate legal bearing but allows a justice to explain his or her disagreements to send a message to the legal community or to influence later cases. On occasion, the Court will issue a decision without the full explanation, known as a *per curiam* opinion.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How has the Supreme Court’s use of judicial review in conjunction with life tenure led to debates about the legitimacy of the court? On separate paper, complete a chart like the one below.*

Controversial or Unpopular Decision of the Court	Responses to the Decision

KEY TERMS AND NAMES

concurring opinion	petition for certiorari
dissenting opinion	rule of four
liberal constructionist	strict constructionist
majority opinion	

Checks on the Judicial Branch

"These courts will eclipse the dignity, and take away from the respectability, of the state courts . . . and in the course of human events it is to be expected, that they will swallow up all the powers of the courts in the respective states."

—*Brutus No. 1*, to the People of New York, 1787

Essential Question: What issues lead to debates about the legitimacy of the Court, and how can other branches limit Supreme Court power?

The Constitution has granted the executive and legislative branches the ability to check the power of the Court. This idea directly relates to Enlightenment philosopher Montesquieu's beliefs on the need for separation of powers and the value of a system of checks and balances.

Judicial Activism vs. Judicial Restraint

Ever since the Supreme Court first exercised judicial review in *Marbury*, it has reserved the right to rule on government action in violation of constitutional principles, whether by the legislature or the executive. Judicial review has seemingly placed the Supreme Court, as Brutus predicted, above the other branches, making it the final arbiter on many controversies. On many topics, as *Brutus No. 1* warned, it has made the federal government supreme while defining what states, Congress, and the president can or cannot do. On other topics, it has restrained the federal government.

When judges strike down laws or reverses public policy, they are exercising **judicial activism**. (To remember this concept, think *judges acting* to create the law.) Activism can be liberal or conservative, depending on the nature of the law or executive action that is struck down. When the Court threw out the New York maximum-hours law in 1905 in *Lochner*, it acted conservatively because it rejected an established liberal statute. In *Roe v. Wade*, the Court acted liberally to remove a conservative anti-abortion policy in Texas. Courts at multiple levels in both the state and federal systems have struck down statutes as well as presidential, departmental, and agency decisions.

The Court's power to strike down parts of, or entire laws, has encouraged litigation and changes in policy. For example, gun owners and the National Rifle Association (NRA) supported an effort to overturn a ban on handguns in Washington, DC and got a victory in the *Heller* decision. (See Topics 3.5

and 3.7.) Several state attorneys general who opposed the Affordable Care Act sued to overturn it. In a 5:4 decision, in *National Federation of Independent Business v. Sebelius* (2012), the Court upheld the key element of the Affordable Care Act, the individual federal mandate that requires all citizens to purchase health insurance or pay a penalty. In striking down limits on when a corporation can advertise during a campaign season, it struck down parts of Congress's Bipartisan Campaign Reform Act (2002) in *Citizens United v. FEC* (2010). (See Topic 5.4.)

Critics of judicial activism tend to point out that, in a democracy, elected representative legislatures should create policy. These critics advocate for **judicial restraint**. Chief Justice Harlan Fiske Stone first used the term in his 1936 dissent when the majority outlawed a New Deal program. The Court should not, say these critics, decide a dispute in that manner unless there is a concrete injury to be relieved by the decision. Strict constructionist Antonin Scalia once claimed, "A 'living' Constitution judge [is] a happy fellow who comes home at night to his wife and says, 'The Constitution means exactly what I think it ought to mean!'" Justices should not declare a law unconstitutional, strict constructionists say today, when it merely violates their own idea of what the Constitution means in a contemporary context, but only when the law clearly and directly contradicts the document. To do otherwise is "legislating from the bench," say strict constructionists. This ongoing debate about judicial activism and restraint has coincided with discussions about the Court's role in shaping national policy.

Still other critics argue that judicial policymaking is ineffective as well as undemocratic. Wise judges have a firm understanding of the Constitution and citizens' rights, but they don't always study issues over time. Most judges don't have special expertise on matters of environmental protection, operating schools, or other administrative matters. They don't have the support systems of lawmakers, such as committee staffers and researchers, to fully engage an issue to find a solution. When courts rule, the outcome is not always practical or manageable for those meant to implement it. Additionally, many such court rulings are just unpopular, and with judges' life tenures, there's no recourse for the citizenry.



THINK AS A POLITICAL SCIENTIST: DESCRIBE POLITICAL PRINCIPLES IN DIFFERENT SCENARIOS

The principle of checks and balances prevents the concentration of too much power in a single branch of government. Critics of the judicial branch point to the concept of judicial activism as a way for that institution to gain too much power. Judicial activism is exercised when judges overlook legal precedents and follow their own political views in rulings. Conversely, when judges hesitate to inject their own preferences into legal rulings unless a law is clearly unconstitutional, they are exercising judicial restraint.

Practice: Read the cases below. Identify in each case whether the Court acted with *judicial restraint* or *judicial activism* and explain your reasoning.

1. *Korematsu v. United States* (1944). President Franklin Roosevelt signed Executive Order 9066 soon after the Japanese attack on Pearl Harbor, requiring Japanese Americans to relocate to internment camps for the security of the nation. Fred Korematsu refused to obey the order and was arrested. He sued, claiming his Fifth Amendment rights were violated. The Ninth Circuit Court affirmed his conviction.

The Supreme Court found that the executive order did not show racial prejudice and was valid because of the necessity of protecting the nation from attack. Justice Frankfurter concurred, “. . . martial necessity arising from the danger of espionage and sabotage” justified the order.

2. *Obergefell v. Hodges* (2015). Numerous couples sued Ohio, Michigan, Kentucky, and Tennessee over the states’ refusals to recognize same-sex marriages. The Sixth Circuit Court of Appeals reversed lower court rulings and upheld that the states’ position doesn’t violate the couples’ Fourteenth Amendment rights.

The Supreme Court ruled that the due process and the equal protection clauses guarantee the right to marry as a fundamental liberty and apply to same-sex couples. States may not deny same-sex couples the same right to marry as opposite-sex couples. Chief Justice John Roberts wrote in his dissent, “Five lawyers have closed the debate and enacted their own vision of marriage as a matter of constitutional law.”

Interactions with Other Branches

Congress and the president interact with the judiciary in many ways. From the creation of various courts to the appointment of judges to implementation of a judicial decision, the judiciary often crosses paths with the other two branches. Despite the concern of some Anti-Federalists, the other branches of government do have ways to limit the power of the Supreme Court. **BIG IDEA** The U.S. Constitution establishes a system of checks and balances among branches of government and allocates power between federal and state governments. This system is based on the rule of law and the balance between majority rule and minority rights.

Presidential Appointments and Senate Confirmation

With hundreds of judgeships in the lower courts, presidents will have a chance to appoint judges to the federal bench over their four or eight years in office. When a vacancy occurs, or when Congress creates a new seat on an overloaded court, the president carefully selects a qualified judge because that person can shape law and will likely do so until late in his or her life.

Senate's Advice and Consent The Senate Judiciary Committee reviews the president's judicial appointments. Sometimes nominees appear before the committee to answer senators' questions about their experience or their views on the law. Less controversial district judges are confirmed without a hearing based largely on the recommendation of the senators from the nominee's state. The more controversial, polarizing Supreme Court nominees will receive greater attention during sometimes contentious and dramatic hearings.

The quick determination of an appointee's political philosophy has become known as a "litmus test." Much like quickly testing a solution for its pH in chemistry class, someone trying to determine a judicial nominee's ideology on the political spectrum will ask a pointed question on a controversial issue or look at one of the nominee's prior opinions from a lower court. Presidents, senators, or pundits can conduct such a "test." The very term has a built-in criticism, as a judge's complex judicial philosophy should not be determined as quickly as a black-and-white scientific measurement.

Senatorial Courtesy The Senate firmly reserves its right of advice and consent. "In practical terms," said George W. Bush administration attorney Rachel Brand, "the home state senators are almost as important as—and sometimes more important than—the president in determining who will be nominated to a particular lower-court judgeship." This practice of **senatorial courtesy** is especially routine with district judge appointments, as districts are entirely within a given state. When vacancies occur, senators typically recommend judges to the White House.

Senate procedure and tradition give individual senators veto power over nominees located within their respective states. For U.S. district court nominations, each of the two senators receives a blue slip—a blue piece of paper they return to the Judiciary Committee to allow the process to move forward. To derail the process, a senator can return the slip with a negative indication or never return it at all. The committee chair will usually not hold a hearing on the nominee's confirmation until both senators have consented. This custom has encouraged presidents to consult with the home-state senators early in the process.

All senators embrace this influence. They are the guardians and representatives for their states. The other 98 senators tend to follow the home state senators' lead, especially if they are in the same party, and vote accordingly. This custom is somewhat followed with appeals court judges as well.

Confirmation When a Supreme Court vacancy occurs, a president has a unique opportunity to shape American jurisprudence. Of the 162 nominations to the Supreme Court over U.S. history, 36 were not confirmed. Eleven were rejected by a vote of the full Senate. The others were either never acted on by the Judiciary Committee or withdrawn by the nominee or by the president. Few confirmations brought rancor or public spectacle until the Senate rejected two of President Nixon's nominees. Since then, the Court's influence on controversial topics, intense partisanship, the public nature of the contentious confirmation process, and contentious hearings have highlighted the divides between the parties.

BY THE NUMBERS
RECENT PRESIDENTS' JUDICIAL APPOINTMENTS

President	Supreme Court	Appeals Courts	District Courts	Total
Nixon (1969–1974)	4	45	182	231
Ford (1974–1977)	1	12	52	65
Carter (1977–1981)	0	56	206	262
Reagan (1981–1989)	3	78	292	373
G.H.W. Bush (1989–1993)	2	37	149	188
Clinton (1993–2001)	2	62	306	370
G.W. Bush (2001–2009)	2	61	261	324
Obama (2009–2017)	2	49	268	319
Trump (2017–2019)*	2	51	137	190

*President Trump's appointments are through the first two years of his presidency.

Source: U.S. Courts. Excludes Court of International Trade

What do the numbers show? Which presidents appointed more judges than others? On average, how many Supreme Court judges does a president appoint? How many lower court judges? Which president of recent years appointed the most? How do a president's judicial appointees impact law and government in the United States?

Interest Groups The increasingly publicized confirmation process has also involved interest groups. Confirmation hearings were not public until 1929. In recent years, they have become a spectacle and may include a long list of witnesses testifying about the nominee's qualifications. The most active and reputable interest group to testify about judicial nominees is the American Bar Association (ABA). Since the 1950s, this association of lawyers has been involved in the process. They rate nominees as “highly qualified,” “qualified,” and “not qualified.” More recently, additional groups weigh in on the process, especially when they see their interests threatened or enhanced. Interest groups also target a senator's home state with ads urging voters to contact their senators in support of or in opposition to the nominee. Indeed, interest groups sometimes suggest or even draft questions for senators to assist them at the confirmation hearings.

Getting “Borked” The confirmation process began to focus on ideology during the Reagan administration. President Reagan nominated U.S. Appeals Court Judge Robert Bork for the Supreme Court in 1987. He was an advocate of original intent, or “originalism,” seeking to uphold the Constitution as the framers intended. He made clear that he despised the rulings of the activist Warren Court. When asked about his nomination, then-Senator Joe Biden, chair of the Senate Judiciary Committee, warned the White House that choosing Bork would likely result in a confirmation fight. Senator Edward Kennedy drew a line in the sand at a Senate press conference. “Robert Bork's America,” Kennedy said, “is a land in which women would be forced into back

alley abortions, blacks would sit at segregated lunch counters, rogue police could break down citizens' doors in midnight raids, and schoolchildren could not be taught evolution." Kennedy's warning brought attention to Judge Bork's extreme views that threatened to turn back a generation of civil rights and civil liberties decisions.



Source: Wikimedia Commons

President Ronald Reagan meeting with Supreme Court nominee Robert Bork

After hearings with the committee, the full Senate, which had unanimously confirmed Bork as an appeals court judge in 1981, rejected him by a vote of 58 to 42. The term “to bork” entered the American political lexicon, defined more recently by the *New York Times*: “to destroy a judicial nominee through a concerted attack on his character, background, and philosophy.”

Clarence Thomas In 1991, President Bush announced his replacement for retiring Justice Thurgood Marshall, the first African American on the Court. He nominated conservative U.S. Appeals Court judge Clarence Thomas, who, as an African American, reflected the left's desire for diversity and the right's desire for a strict constructionist.

Several concerns about Thomas' appointment arose. Thomas was known for very conservative views, causing liberals to take issue with his ideology. He had served as a district appeals judge for only about a year before his nomination, leading some to question Thomas' experience.

Then Anita Hill, a former employee of Thomas, came forward with accusations against him of sexual misconduct. The Judiciary Committee invited her to testify. In a highly televised carnival atmosphere, Hill testified for seven hours about the harassing comments Thomas had made and the pornographic films he discussed. Thomas denied all the allegations and called the hearing a

“high-tech lynching.” After a tie vote in an all-white male judiciary committee, the full Senate barely confirmed Thomas.

“The Nuclear Option” During George W. Bush’s first term, Democrats did not allow a vote on 10 of the 52 appeals court nominees that had cleared the Judiciary Committee. Conservative nominees were delayed by Senate procedure. The Democrats, in the minority at the time, invoked the right to filibuster votes on judges. One Bush nominee waited four years.

Bush declared in his State of the Union message, “Every judicial nominee deserves an up or down vote.” Senate Republicans threatened to change the rules to disallow the filibuster, which could be done with a simple majority vote. The threat to the filibuster became known as a drastic “nuclear option.” The nuclear option was averted when a bipartisan group of senators dubbed the “Gang of 14” joined forces to create a compromise that kept the Senate rules the same while confirming most appointees.

Denying Garland In February 2016, Justice Antonin Scalia died. Republican presidential candidates in the primary race agreed on one thing: the next president should appoint Scalia’s replacement. With Democratic President Obama in his final year on the job, Republican Senate Majority Leader Mitch McConnell announced that the Senate would not hold a vote on any nominee until the voters elected a new president. A month later, with ten months remaining until a new president would be sworn in, Obama nominated Judge Merrick Garland to replace Scalia. Garland was a judicial selection from the DC Circuit with a unanimous “well-qualified” rating from the ABA. Senator McConnell’s decision was strategic if unusual, and he kept his promise to use “the nuclear option,” to the dismay of many. Vacancies on the Supreme Court do occur, and the Court can operate temporarily with eight members, but to ensure the vacancy for more than ten months was unprecedented.

Constitutionally, nothing mandates a timeline on the Senate’s confirmation process. In the end, Donald Trump won the presidency, Republicans retained control of the Senate, and Trump nominated Tenth Circuit Judge Neil Gorsuch within two weeks of his inauguration. The Senate confirmed Gorsuch by a vote of 54 to 45.

Executive and Legislative Influence on the Courts’ Power

In addition to strategically choosing judicial nominees and selectively approving them, the president and Congress interact with lower courts and the Supreme Court in other ways. The other branches have the powers to bring matters and crimes to court, impeach and remove judges, use the power of the purse to affect the judiciary and judicial decisions, partially redefine courts’ jurisdiction, and implement court rulings in their own way.

The Justice Department In addition to appointing the judiciary, the executive branch enters the federal courts to enforce criminal law and to weigh in on legal questions. The president’s Department of Justice, headed

by the attorney general, investigates federal crimes with the Federal Bureau of Investigation (FBI) or the Drug Enforcement Administration (DEA), and U.S. attorneys prosecute the accused criminals. These attorneys are also the legal authority for federal civil law on a more local basis. When a party sues the federal government, U.S. attorneys defend the United States. In appealed criminal cases, these attorneys present the oral arguments in the circuit courts.

Another high-ranking figure in the Department of Justice is the solicitor general, who works in the Washington, DC office. Appointed by the president and approved by the Senate, the solicitor general determines which cases to appeal to the U.S. Supreme Court and represents the United States in Supreme Court cases. When you see a Supreme Court case entitled the “*United States v. John Doe*,” it means that the United States lost in one of the circuit courts and the solicitor general sought an appeal.

The solicitor general may also submit an *amicus curiae* brief (friend of the court brief) to the Supreme Court in cases in which the United States is not a party. An amicus brief argues for a particular ruling in the case. Several solicitors general have later been appointed to the High Court, notably Stanley Reed, Thurgood Marshall, and Elena Kagan.

Impeachment Federal judges who act criminally or perhaps unethically can be impeached and removed. In 1804, John Pickering, a Federalist, became the first judge to be impeached. Pickering refused to resign, so the House impeached him, and the Senate convicted him on the charges of drunkenness and unlawful rulings.

Almost immediately after Pickering’s impeachment, Thomas Jefferson’s party, the Democratic-Republicans, moved to impeach Supreme Court Justice Samuel Chase to weaken the Federalist presence on the Court. However, Jefferson wanted to avoid making the impeachment process a political tool to rid the third branch of opponents, so he withdrew his support, and Chase survived the Senate vote. Impeachment has served as Congress’s check on the judges’ life terms, and the House has impeached 15 federal judges.

Congressional Oversight and Influence Congress sets and pays judges’ salaries. Congress budgets for the construction and maintenance of federal courthouses. It has passed an entire body of law that helps govern the judiciary. This includes regulations about courtroom procedures to judicial recusal—judges withdrawing from a case if they have a conflict of interest. Occasionally Congress creates new seats in the 94 district courts and on the 13 appeals courts. Congress has more than doubled the number of circuit and district judges over the last 50 years.

Defining Jurisdiction

Article III includes the power to consider all cases arising under the Constitution, federal law or treaty, and admiralty or maritime jurisdiction. It also addresses the

types of cases that the judicial branch and specifically the “Supreme Court shall have . . . under such Regulations as the Congress shall make.”

Since the initial Judiciary Act of 1789, Congress has periodically defined and reshaped the courts’ jurisdiction. The most convenient and unquestioned power involves the legislature’s power to define what types of cases are heard by which federal courts and which types of cases are left to the state courts. Article III also empowers Congress to define the types of parties that can go to the various courts, thereby defining **standing**, the requirements for bringing a case to court. Congress cannot create state courts, but it can endow them with concurrent power to hear certain cases concerning federal law.

Congress occasionally delves into “court-stripping,” or jurisdiction stripping, when it wants to limit the judicial branch’s power in hearing cases on particular topics. For example, in the 108th Congress of 2003–2005, in an effort to protect the Pledge of Allegiance, which was under fire for its “under God” phrase, the House voted to take away the courts’ power to hear such cases. It also voted to deny funds in order to implement any such decisions. The same House voted to prevent federal courts from hearing cases regarding the Defense of Marriage Act. Conservative representatives were reacting to court filings, lower federal court decisions, and the coming strategy of using the courts to legalize same-sex marriage. The Senate failed to vote for the law, and thus courts have ruled on these matters.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *What issues lead to debates about the legitimacy of the Court, and how can other branches limit Supreme Court power? On separate paper, complete a chart like the one below.*

Executive Checks on the Judicial Branch	Legislative Checks on the Judicial Branch

KEY TERMS AND NAMES

Bork, Robert	“nuclear option”
Garland, Merrick	senatorial courtesy
judicial activism	standing
judicial restraint	Thomas, Clarence

CHAPTER 6 Review:

Learning Objectives and Key Terms

TOPIC 2.8: Explain the principle of judicial review and how it checks the powers of the other institutions and state governments. (CON-5.A)

Judicial Power and Checks (CON-5.A.1)

appellate jurisdiction

Attorney General

certiorari

Federalist No. 78

judicial review

Marbury v. Madison (1803)

original jurisdiction

U.S. District Courts

U.S. Circuit Courts of Appeals

U.S. Supreme Court

TOPIC 2.9: Explain how the exercise of judicial review in conjunction with life tenure can lead to debate about the legitimacy of the Supreme Court's power. (CON-5.B)

Precedent and Stare Decisis (CON-5.B.1)

binding precedent

persuasive precedent

stare decisis

precedent

Presidential Appointments and Ideological Changes (CON-5.B.2)

Roberts, John

TOPIC 2.10: Explain how the exercise of judicial review in conjunction with life tenure can lead to debate about the legitimacy of the Supreme Court's power. (CON-5.B)

Challenging the Court's Legitimacy and Power (CON-5.B.3)

concurring opinion

dissenting opinion

liberal constructionist

majority opinion

petition for certiorari

rule of four

strict constructionist

TOPIC 2.11: Explain how the exercise of judicial review in conjunction with life tenure can lead to debate about the legitimacy of the Supreme Court's power. (CON-5.B)

TOPIC 2.11: Explain how the other branches in the government can limit the Supreme Court's power. (CON-5.C)

Judicial Activism vs. Judicial Restraint (CON-5.B.4)

judicial activism

judicial restraint

Limits on the Supreme Court's Power (CON-5.C.1)

Bork, Robert

"nuclear option"

Garland, Merrick

senatorial courtesy

standing

Thomas, Clarence

CHAPTER 6 Checkpoint:

The Judiciary

Topics 2.8–2.11

MULTIPLE-CHOICE QUESTIONS

1. Which of the following is an accurate comparison of judicial activism and judicial restraint?

	JUDICIAL ACTIVISM	JUDICIAL RESTRAINT
(A)	Can result in shaping federal, but not state, policies	Is practiced when an appeals court refuses to grant an appeal
(B)	Was established with the Judiciary Act of 1789	Was practiced in the Court's ruling in <i>Roe v. Wade</i>
(C)	Is a democratic way to assure popular polices in a representative government	Is practiced when courts limit the legislative or executive branches
(D)	Is practiced when courts overrule legislative acts or shape policy	Is exercised when courts hesitate from interfering with policies created by elected bodies

Questions 2 and 3 refer to the passage below.

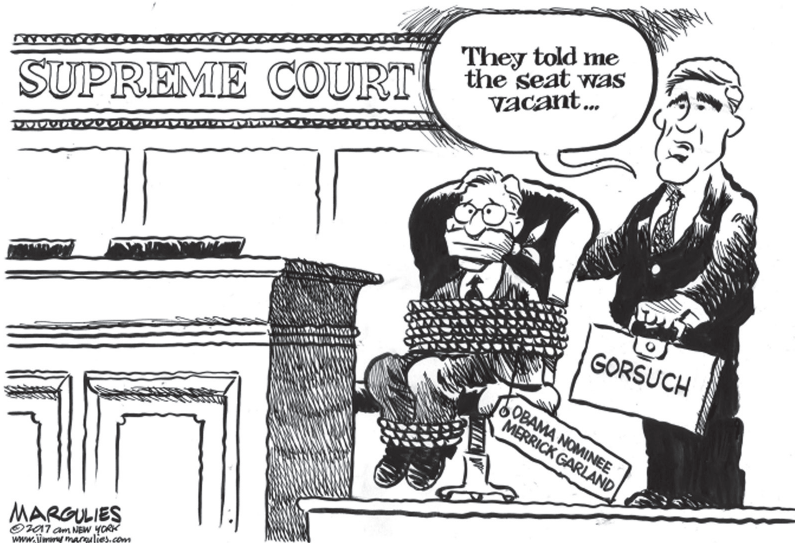
If there are such things as political axioms, the propriety of the judicial power of a government being coextensive with its legislative, may be ranked among the number. The mere necessity of uniformity in the interpretation of the national laws, decides the question. Thirteen independent courts of final jurisdiction over the same causes, arising upon the same laws, is a hydra [a many-headed serpent in Greek mythology] in government, from which nothing but contradiction and confusion can proceed.

—Alexander Hamilton, *Federalist No. 80*, 1788

2. Which of the following statements best describes Hamilton's argument?
- (A) The thirteen states should retain their courts and have independence from national law.
 - (B) The proposed federal courts and the Supreme Court will provide national consistency in law.
 - (C) Because the national court system will have multiple judges, differing decisions will cause confusion.
 - (D) The judicial branch should be the superior branch of government.

3. Those countering Hamilton's argument today might point to which of the following?
- (A) The strength and impact of a judge's dissenting opinions
 - (B) The length of judges' terms during good behavior
 - (C) The differing views of federal judges and the resulting inconsistent rulings
 - (D) The Supreme Court's over-implementation of the rule of four
4. A U.S. district judge in Alabama has a dispute brought to his court in which an employee is suing her employer over improper termination on gender discrimination. The Ninth Circuit Court of Appeals, which includes several western states, and the U.S. District Court of Kansas have both previously ruled on very similar cases under the same law and sided with the employee. Which of the following is the likely action this federal judge will take?
- (A) The judge must rule in the same way because of binding precedent.
 - (B) The judge will read the other two courts' opinions and consider them before making a ruling.
 - (C) The judge will ask the Justice Department for guidance.
 - (D) The judge will refuse to hear the case because the federal courts have no jurisdiction in this matter.

Questions 5 and 6 refer to the cartoon below.



Source: Jimmy Margulies, Politicalcartoons.com

5. Which of the following best illustrates the message of the cartoon?
- (A) One judge shows judicial restraint; the other judge shows judicial activism.
 - (B) There are too many applicants for the Supreme Court.
 - (C) The Court is tied up in bureaucratic matters and cannot address judicial appointments.
 - (D) One president's judicial appointment was held and later replaced by the following president's appointment.
6. Which of the following constitutional principles allowed the events shown in the cartoon?
- (A) The lawmaking process
 - (B) The Senate's advice and consent role
 - (C) The use of judicial review
 - (D) The original jurisdiction of U.S. District Courts

FREE-RESPONSE QUESTIONS

Concept Application

1. The Supreme Court closed out its 2011–12 term today in dramatic fashion, upholding the Affordable Care Act by a sharply divided vote [in *National Federation of Independent Business v. Sebelius*]. The Court's bottom line, reasoning and lineup of justices all came as a shock to many. . . . I don't think anyone predicted that the law would be upheld *without* the support of Justice Anthony Kennedy, almost always the Court's crucial swing vote. And while most of the legal debate focused on Congress's power under the Commerce Clause, the Court ultimately upheld the law as an exercise of the taxing power. . . . The most surprising thing of all, though, is that in the end, this ultraconservative Court decided the case, much as it did in many other cases this term, by siding with the liberals."

—David Cole, *The Nation*, June 28, 2012

After reading the scenario above, respond to A, B, and C below:

- (A) Describe the process that led to an unexpected ruling by the Supreme Court on the challenge to the Affordable Care Act.
- (B) In the context of this scenario, explain how the process described in part A can be affected by the executive branch.
- (C) In the context of this scenario, explain how the ruling relates to enumerated powers.

Quantitative Analysis

Supreme Court Justices' Voting Relationships, 2017

Justice Agreement in full, in part, or in judgment								
	AMK	CT	RBG	SGB	SAA	SMS	EK	NMG
JGR	87.5%	75%	81.25%	81.25%	75%	81.25%	85.71%	93.75%
	AMK	87.5%	68.75%	68.75%	87.5%	68.75%	71.43%	93.75%
		CT	68.75%	68.75%	100%	68.75%	71.43%	81.25%
			RBG	100%	68.75%	100%	100%	81.25%
				SGB	68.75%	100%	100%	75%
					SAA	68.75%	71.43%	81.25%
						SMS	100%	75%
							EK	78.57%

Justices' Initials, Full Names, and President Who Appointed Them

JGR: Chief Justice John G. Roberts, appointed by Republican George W. Bush
AMK: Anthony Kennedy, appointed by Republican Ronald Reagan
CT: Clarence Thomas, appointed by Republican George H.W. Bush
RBG: Ruth Bader Ginsburg, appointed by Democrat Bill Clinton
SGB: Stephen G. Breyer, appointed by Democrat Bill Clinton
SAA: Samuel Anthony Alito Jr., appointed by Republican George W. Bush
SMS: Sonia Sotomayor, appointed by Democrat Barack Obama
EK: Elena Kagan, appointed by Democrat Barack Obama
NMG: Neil Gorsuch, appointed by Republican Donald Trump

Source: SCOTUSblog

2. Use the information in the graphic to answer the questions below.
- (A) Describe what the data in the table shows about the voting of Supreme Court justices.
 - (B) Identify two justices who agree with the other's judgment one hundred percent of the time.
 - (C) Draw a conclusion about why the judges you identified in B agree so often.
 - (D) Explain how the design of the judicial branch protects the Supreme Court's independence.

SCOTUS Comparison

3. During the Watergate investigation in the early 1970s, the special prosecutor wanted information discussed on President Nixon's White House audio tapes as evidence in the investigation. When the lower court issued a subpoena for the tapes, the president refused to hand them over, claiming executive privilege (his right to keep his discussions confidential) because some were of delicate national security interests and not the business of the court. Only by guaranteeing confidentiality, he argued, could he preserve the candor of advisors. In *United States v. Nixon* (1974), the Supreme Court ruled in a unanimous decision that, in the fair administration of justice, a court could compel even the president with its power of subpoena during an investigation. Nixon had to comply by handing over the tapes as evidence in the investigation.
- (A) Identify a similarity or difference between the rulings in *United States v. Nixon* (1974) and *Marbury v. Madison* (1803).
 - (B) Based on the similarity or difference identified in A, explain how *United States v. Nixon* relates to the interactions between branches.
 - (C) Describe an action the executive branch might take to limit the impact of *United States v. Nixon*.



Source: U.S. House of Representatives Photography Office

Barbara Jordan of Texas sat on the House Judiciary Committee as a freshman during the Watergate hearings.

CHAPTER 7

The Bureaucracy

Topics 2.12–2.15

Topic 2.12 The Bureaucracy

PMI-2.A: Explain how the bureaucracy carries out the responsibilities of the federal government.

Topic 2.13 Discretionary and Rule-Making Authority

PMI-2.B: Explain how the federal bureaucracy uses delegated discretionary authority for rule making and implementation.

Topic 2.14 Holding the Bureaucracy Accountable

PMI-2.C: Explain how Congress uses its oversight power in its relationship with the executive branch.

PMI-2.D: Explain how the president ensures that executive branch agencies and departments carry out their responsibilities in concert with the goals of the administration.

Topic 2.15 Policy and the Branches of Government

PMI-2.E: Explain the extent to which governmental branches can hold the bureaucracy accountable given the competing interests of Congress, the president, and the federal courts.



Source: Wikimedia Commons, Chuck Kennedy
President Barack Obama and his Cabinet

The Bureaucracy

“Are you laboring under the impression that I read these memoranda of yours? I can’t even lift them.”

—attributed to President Franklin Delano Roosevelt
to an appointed bureaucrat

Essential Question: How does the bureaucracy carry out the responsibilities of the federal government?

The federal government provides many services, such as maintaining interstate highways, coordinating air traffic at airports and in flight, protecting borders, enforcing laws, and delivering mail. Congress has passed a law and created one or more executive branch departments or agencies to carry out these responsibilities of government. The federal **bureaucracy** is the vast, hierarchical organization of executive branch employees—close to 3 million people ranging from members of the president’s Cabinet to accountants at the Internal Revenue Service—that take care of the federal government’s business.

As the nation has grown, so has the government and the bureaucracy. Federal agencies interpret, administer, and enforce the laws that Congress has passed. These responsibilities combined with administrative or bureaucratic discretion have created a powerful institution.

Today’s bureaucracy is a product of 200 years of increased public expectation and increased federal responsibilities. Government professionals assure the executive agenda and congressional mandates are implemented and followed. The bureaucracy is involved in every issue of the nation and provides countless services to U.S. citizens.

Structure of the Bureaucracy

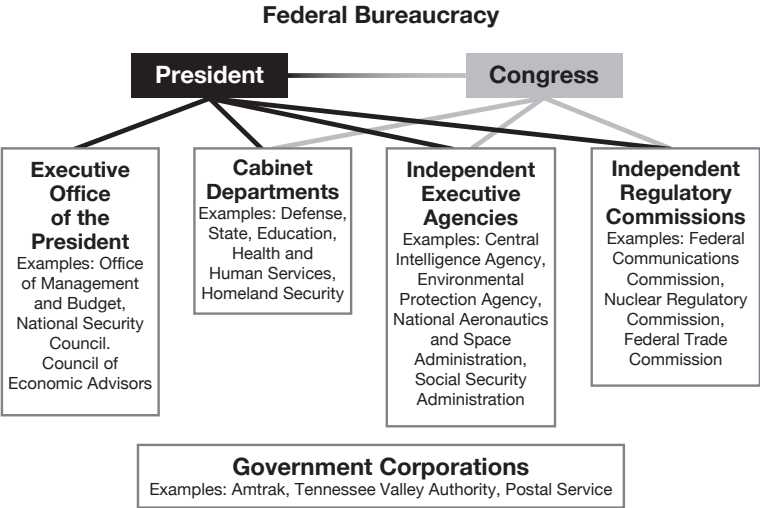
The executive hierarchy is a vast structure of governing bodies headed by professional bureaucrats. They include departments, agencies, commissions, and a handful of private-public organizations known as government corporations.

Cabinet Secretaries

To help manage the bureaucracy, presidents today appoint more than 2,000 upper-level management positions, deputy secretaries, and bureau chiefs; many of these appointments require Senate confirmation. Most

of these people tend to be in the president’s party and have experience in a relevant field of government or the private sector.

President John F. Kennedy named his brother, Robert, as the nation’s attorney general. President Barack Obama brought with him the Chicago superintendent of schools to serve as his secretary of education. President Donald Trump named fellow New York financiers and Wall Street moguls to direct economic agencies.



Departments

The president oversees the executive branch through a structured system of 15 departments. Newer departments include Energy, Veterans Affairs, and Homeland Security. Departments have been renamed and divided into multiple departments. The largest department is by far the Department of Defense.

Each Cabinet secretary directs a department. Though different secretaries handle different areas of jurisdictions, and surely have different pressures and face different issues, they are all paid the same salary.

Agencies

The departments contain agencies that divide the departments’ goals and workload. In addition to the term *agency*, these subunits may be referred to as divisions, bureaus, offices, services, administrations, and boards. The Department of Homeland Security houses the Immigration and Customs Enforcement (ICE), the Coast Guard, and the Transportation Security Administration (TSA). These agencies deal with protecting the country and its citizens. There are hundreds of agencies, many of which have headquarters in Washington, DC, as well as regional offices in large U.S. cities. The president appoints the head of each agency, typically referred to as the “director.” Most directors serve under a president during a four- or eight-year term. Some serve longer terms as defined in the statute that creates the agency.

FEDERAL DEPARTMENTS	
Department	Originally Established
Department of State	1789
Department of Treasury	1789
Department of Defense	1789
Department of Interior	1849
Department of Agriculture	1862
Department of Justice	1870
Department of Commerce	1903
Department of Labor	1913
Department of Veterans Affairs	1930
Department of Health and Human Services	1953
Department of Housing and Urban Development	1965
Department of Transportation	1967
Department of Energy	1979
Department of Homeland Security	2002

The FBI is a law enforcement agency. Additional agencies fill the bureaucracy—embassies and ambassadors work within the State Department and tax collectors at the Internal Revenue Service work under the umbrella of the Treasury Department. Independent agencies, such as the National Aeronautics and Space Administration (NASA), are also in the executive branch bureaucracy, but they are not connected to a department. Congress has structured these in this way to avoid undue influence from a department. The much more complicated independent regulatory agencies can create policies with the enforcement of law for unique industries or jurisdictions. (See Topic 2.13.)

Commissions and Government Corporations

Cabinet agencies and executive agencies have one head. Independent commissions have a body (board) that consists of five to seven members. Members of these boards and commissions have staggered terms to ensure that a president cannot completely replace them with his own cronies. For example, if the Federal Reserve Board was composed of members appointed by one president, they could boost re-election chances by manipulating the interest rate and artificially stimulating the economy as an election nears. Such an action would make the agencies and commissions political rather than neutral.

Government corporations are a hybrid of a government agency and a private company. These started to appear in the 1930s, and they are usually created when the government wants to overlap with the private sector.



THINK AS A POLITICAL SCIENTIST: EXPLAIN HOW AN ARGUMENT RELATES TO POLITICAL INSTITUTIONS AND POLICIES

An argument, or claim, is a statement that can be supported by facts or evidence. The more evidence that can be presented, the stronger the argument. For example, a common claim made about the bureaucracy is that it is an inefficient and ineffective organization. The Transportation Safety Administration (TSA) especially, as a part of the bureaucracy, has experienced considerable criticism since its inception in 2001. The TSA safeguards air travel but has recently come under increased scrutiny for the problems that plague its security checkpoints at airports—weapons making it through screenings and long lines leading to missed flights, to name a few.

Practice: Read the excerpt about the TSA, written by Remington Tonar and Ellis Talton, business and leadership consultants and contributors to *Forbes*, a business publication. Then answer the questions that follow.

In 2017, Homeland Security inspectors were able to transport facsimile firearms, explosives and knives through TSA checkpoints an appalling 70 percent of the time. This is not only unacceptable, but calls into question the effectiveness of the TSA. Many experts, in fact, have long criticized the TSA as “security theater,” noting that body scanners are largely ineffective at detecting common explosive materials. Further, there’s been very little evidence that measures such as the liquid ban are in any way essential or effective, and even the European Union has been trying to eliminate liquid restrictions for years. Numerous studies have found that the TSA has consistently mismanaged security investments and that private screeners perform as good or better than TSA screeners.

With a nearly \$8 billion annual budget, the TSA hardly seems like a good investment, especially when 10 percent of its workforce can call in sick without dramatically impacting efficiency or security (at least thus far). While we shouldn’t put a price on human life, there’s also an opportunity cost that needs to be considered. . . . There are more effective ways to deter, prevent and impede would-be hijackers and terrorists.

1. What is the author’s main argument, or thesis, about how the TSA implements policy?
2. What evidence does the author provide to back up that argument?
3. What biases do the authors show related to the TSA or the bureaucracy in general?

Tasks Performed by the Bureaucracy

When Congress creates departments and agencies, it defines the organization's mission and empowers it to carry out the mission. The legislature gives the departments broad goals, as they administer several agencies and a large number of bureaucrats within those departments. Agencies have more specific goals, and independent regulatory agencies have even more specialized responsibilities in their administrative mission.

Writing and Enforcing Regulations

The legislation that creates and defines the departments and agencies often gives wide latitude as to how bureaucrats administer the law. Though all executive branch organizations have a degree of discretion in how they carry out the law, the independent regulatory agencies and commissions have greater leeway and power to shape and enforce national policies than the others.

Take, for example, the chief passage from the 1970 Clean Water Act that charged the Environmental Protection Agency (EPA) to enforce it, "The nation's waters should be free of pollutants in order to protect the health of our citizens and preserve natural habitats. Individuals or companies shall not pollute the nation's water. If they do, they will be fined or jailed in accordance with the law. The EPA shall set pollution standards and shall have the authority to make rules necessary to carry out this Act."

Few of the 535 legislators who helped pass this act are experts in the environmental sciences. So they delegated this authority to the EPA and keep in contact with the agency to assure that this mission is accomplished.

Enforcement and Fines

Like a court, the regulatory agencies, commission, and boards within the bureaucracy can impose fines or other punishments. This administrative adjudication targets industries or companies, not individual citizens. For example, the federal government collected civil penalties paid in connection with the 2010 Deepwater Horizon oil spill ranging from about \$400 million in fiscal year 2013 to about \$160 million in fiscal year 2016.

One key aspect of enforcement is **compliance monitoring**, making sure the firms and companies that are subject to industry regulations are following those standards and provisions. (See Topic 2.14 for more on compliance monitoring.)

Testifying Before Congress

Cabinet secretaries and agency directors are often experts in their field. For this reason, they frequently appear before congressional committees to provide expert testimony. For example, former FBI Director James Comey testified before the Senate Intelligence Committee in June 2017 about matters related to his bureau's investigation into Russian interference in the presidential election of 2016. In September 2017, Deputy Secretary of State John L. Sullivan testified

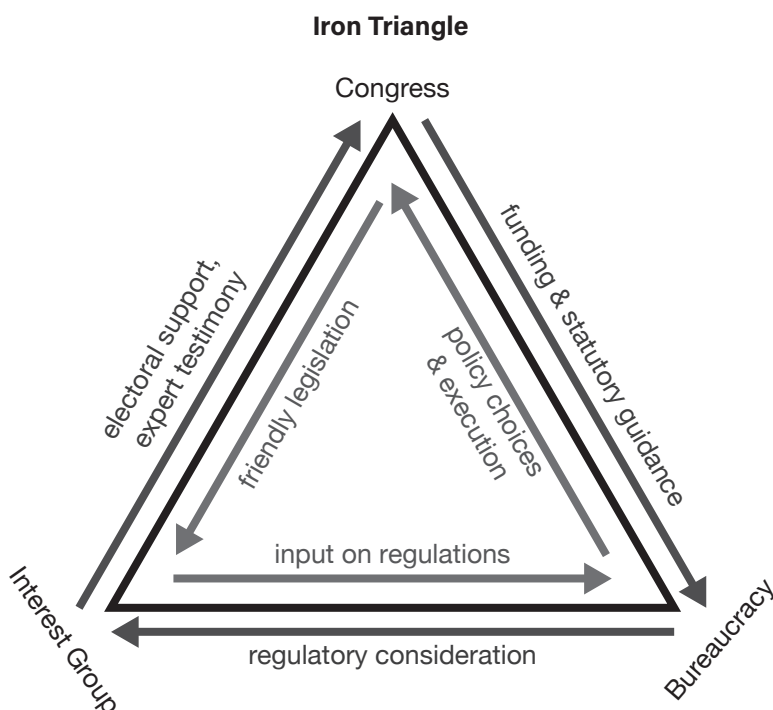
before the House Committee on Foreign Affairs to discuss a redesign of the State Department. The Secretary of Veterans Affairs, the Honorable David J. Shulkin, M.D., testified before the Senate Veterans Affairs Committee in the same month to address the problem of suicide among veterans.

Iron Triangles and Issue Networks

Over time, congressional committees and agencies become well acquainted. Members of Congress and their staffs work with and rely upon the expert advice and information provided by the bureaucracy. In addition, lawmakers and leadership in the executive branch may have worked together in the past. At the same time, interest groups press their agendas with relevant federal agencies. Industry can also create political action committees (PACs) to impact policy and its success. These special interests meet with and make donations to members of Congress as elections near. (See Topic 5.6.) They also meet with bureaucrats during the rule-making process (see Topic 2.13) in an ongoing effort to shape rules that affect them.

The relationship among these three entities—an agency, a congressional committee, and an interest group—is called an **iron triangle** because the three-way interdependent relationships are so strong. The three points of the triangle join forces to create policy. Iron triangles establish tight relationships that are often collectively beneficial. Bureaucrats have an incentive to cooperate with congressional members who fund and oversee their agencies. Committee members have an incentive to pay attention to interest groups that can provide policy information and reward them with PAC donations. Interest groups and agencies generally are out to advance similar goals from the start. However, at times iron triangles are criticized for those goals when they are exclusively for the benefit of special interest and not for the common good.

Recently, scholars have observed the power and influence of **issue networks**. Issue networks include committee staffers (often the experts and real authors of legislation), academics, advocates, leaders of think tanks, interest groups, and/or the media. These experts and stakeholders—sometimes at odds with one another on matters unrelated to the issue they are addressing—collaborate to create specific policy on one issue. The policymaking web has grown because of so many overlapping issues, the proliferation of interest groups, and the influence of industry. **BIG IDEA** Multiple actors and institutions interact to produce and implement possible policies.



Follow the arrows in the above graphic so you can explain how the stages of the give-and-take process in an iron triangle relate to one other. How does the interest group benefit? How does the congressional committee benefit? How does the bureaucracy benefit?

From Patronage to Merit

For the bureaucracy to do its job well, federal employees need to be professional, specialized, and politically neutral. Reforms over the years have helped create an environment in which those goals can be achieved.

The Spoils System

In the early days of the nation, the bureaucracy became a place to reward loyal party leaders with federal jobs, a practice known as **patronage**. Jefferson filled every vacancy with members of his party. As presidents of different parties came and went, this “rotation system” continued regardless of merit or performance of appointees. On Andrew Jackson’s Inauguration Day in 1829, job-hungry mobs pushed into the White House, aggressively seeking patronage jobs. Congressmen began recommending fellow party members, and senators—with advice and consent power—asserted their influence on the process.

Presidents appointed regional and local postmasters in the many branch offices across the nation expecting loyalty in return. This type of patronage system, which came to be known as the **spoils system**, made the U.S. Post Office one of the main agencies to run party machinery.

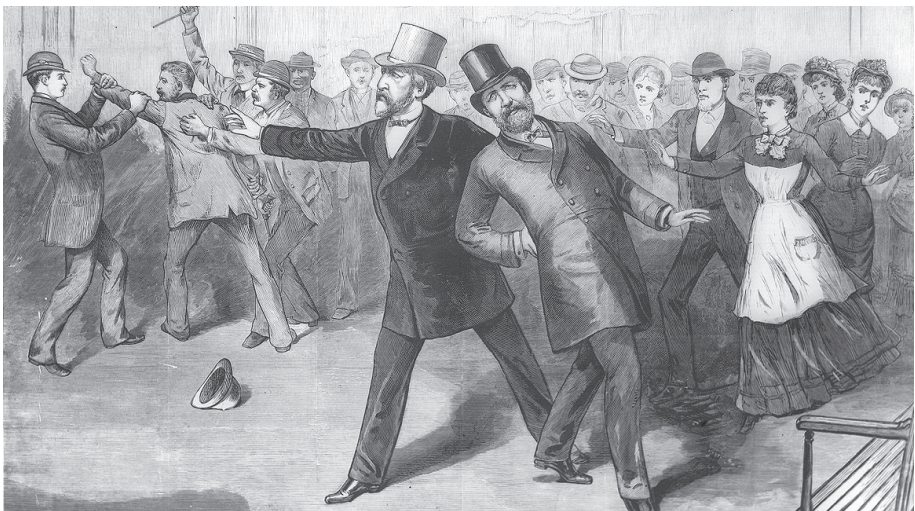
By the end of the Civil War, the spoils system, with ample opportunities for government corruption, was thoroughly entrenched in state and federal politics.

Civil Service Reform

The desire for the best government rather than a government of friends and family became a chief concern among certain groups and associations. Moral-based movements such as emancipation, temperance, and women's suffrage also encouraged taming or dismantling the spoils system. Reformers called for candidate appointments based on merit, skill, and experience.

In 1870, Congress passed a law that authorized the president to create rules and regulations for a civil service. Support for this reform gradually faded, however, until a murder of national consequence brought attention back to the issue. Soon after James Garfield was sworn in as president in 1881, an eccentric named Charles Guiteau began insisting Garfield appoint him to a political office. Garfield denied his requests. On July 2, only three months into the president's term, Guiteau shot Garfield twice as he was about to board a train. Garfield lay wounded for months before he finally died.

Garfield's assassination brought attention to the extreme cases of patronage and encouraged more comprehensive legislation. Congress passed the **Pendleton Civil Service Act** in 1883 to prevent the constant reward to loyal party members. The law ultimately created the **merit system**, which included competitive, written exams for many job applicants. The law also created a bipartisan **Civil Service Commission** to oversee the process and prevented officials from requiring federal employees to contribute to political campaigns.



Source: Wikimedia Commons. A. Berghaus and C. Upham, published in Frank Leslie's Illustrated Newspaper
An engraving of President Garfield's assassination by Charles Guiteau

The establishment of the civil service and an attempt by the U.S. government during the Industrial Era (1876–1900) to regulate the economy and care for the needy brought about the modern administrative state. The bureaucratic system became stocked with qualified experts dedicated to their federal jobs.

In 1887, the government created its first regulatory commission, the Interstate Commerce Commission, to enforce federal law regarding train travel and products traveling across state lines. The Pure Food and Drug Act (1906) brought attention to the meatpacking industry and other food industries, and thus, agencies were created to address these concerns. The Sixteenth Amendment (1913), which gave Congress the power to collect taxes on income, put more money into Treasury coffers, which helped the federal bureaucracy expand.

Improving the Effectiveness of the Bureaucracy

Efforts to make the bureaucracy a more professional and efficient institution of the government continued into the 20th century. President Carter promised, and delivered, reforms to the federal bureaucracy. The **Civil Service Reform Act** (1978) altered how a bureaucrat is dismissed, limited preferences for veterans in hopes of balancing the genders in federal employment and put upper-level appointments back into the president's hands. It also promoted merit and performance among bureaucrats while giving the president more power to move those not performing their jobs successfully.

The Civil Service Commission established by the Pendleton Act operated until the 1978 reforms replaced it with the **Office of Personnel Management (OPM)**. The OPM runs the merit system and coordinates the federal application process for jobs and hiring. The OPM's goals include promoting the ideals of public service, finding the best people for federal jobs, and preserving merit system principles. Many of the larger, more established agencies do their own hiring.

In 1993, President Clinton announced a six-month review of the federal government. The **National Performance Review (NPR)** became Clinton's key document in assessing the federal bureaucracy. The review was organized to identify problems and offer solutions and ideas for government savings. The group focused on diminishing the paperwork burden and placing more discretionary responsibility with the agencies. The report made almost 400 recommendations designed to cut inefficiency, put customers first, empower employees, and produce better and less-expensive government. One report, "From Red Tape to Results," characterized the federal government as an industrial-era structure operating in an information age. The bureaucracy had become so inundated with rules and procedures that it could not perform the way Congress had intended.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How does the bureaucracy carry out the responsibilities of the federal government? On separate paper, complete a chart like the one below.*

Bureaucratic Tasks	How Tasks are Completed

KEY TERMS AND NAMES

- bureaucracy

Civil Service Commission

Civil Service Reform Act (1978)

compliance monitoring

iron triangle

issue networks
- merit system

National Performance Review

Office of Personnel Management

patronage

Pendleton Civil Service Act (1883)

spoils system



“Get ready! The next wave of legislation is rolling in.”

Source: Getty Images

After the Affordable Care Act was passed in 2010, the Center for Consumer Information and Insurance Oversight (CCIIO) was created to oversee and implement health insurance provisions. What does the cartoon suggest about such bureaucratic offices and their ability to do their jobs well?

Discretionary and Rule-Making Authority

"It is an inevitable defect, that bureaucrats will care more for routine than for results."

—A. Walter Bagehot, *The English Constitution*, 1867

Essential Question: How does the federal bureaucracy use delegated discretionary authority to make and implement rules?

There are 15 executive departments functioning in the United States and many more agencies and commissions working below those departments to implement policy. These departments and agencies administer laws that were created and shaped by Congress, the executive branch, and the courts. The process starts when Congress passes the initial law to create and define the mission and jurisdiction of the executive branch department, commission, or board. The president appoints and often directs the heads of these departments. He or she will issue executive orders and directives that shape how the agencies carries out their mission. Significant agency decisions and procedures can be contested in court. So every court opinion on an agency's power or the fairness of its procedures can have an impact on how the department or agency operates.

Delegated Discretionary Authority

The constitutional basis for bureaucratic departments or agencies stems from Congress's authority to create and empower them. Congress also guides and funds them. However, Congress leaves the specific regulations for implementing the policy up to the members of the bureaucracy. They allow **delegated discretionary authority**—the power to interpret legislation and create rules—to executive departments and agencies.

Congress has granted departments, agencies, bureaus, and commissions—staffed with experts in their field—varying degrees of discretion in developing their own rules and regulations required to implement sometimes vague legislation.

Sometimes the laws are so vague that it is not even clear that authority *has* been delegated to an agency. In some cases, the agency can simply claim broad authority. Interpreting the vagueness of the Clean Air Act, for example, the

Environmental Protection Agency has claimed vast authority over regulation of greenhouse gases. The Act provides no detail of EPA authority over these pollutants and contains no mention of greenhouse gases. Yet the EPA asserted its discretionary authority to develop regulations.

Rule-Making Process

Bureaucratic agencies continually survey their responsibilities and periodically create new rules and refine old ones. However, an outcry of support from the citizenry to handle an issue or address a societal danger could cause an agency to take action on devising new rules. New technologies also affect the way an agency must enforce a rule, and new technologies can bring about new rules entirely. For example, the Federal Elections Commission is in the process of addressing Facebook and other political advertising on the Internet much as it has addressed television advertising in the past. Occasionally, agencies with overlapping jurisdictions might suggest or request that a related organization craft rules to encourage efficiency or improve communication to better enforce their common area of law.

A Transparent and Public Process

If an agency determines new rules are needed, it would closely study the issue and the basics of the rule to some degree before seeking public response. Agency officials meet with experts, research the problem themselves, and may even engage industry officials, lobbyists, or citizens who might be subjects of the proposed regulations.

The Administrative Procedures Act The bureaucratic rule-making process has been formalized to make it fair and transparent. It is largely governed by the **Administrative Procedures Act** (APA), which Congress passed in 1946. The law guides agencies in developing their rules and procedures and assures that those citizens and industries affected by a policy can have input into shaping it, providing one of many access points for stakeholders to promote their interests.

Some congressional statutes require agencies to hold rule-making hearings. Others choose to hold public meetings to collect more information or to help inform the stakeholders or the affected groups of the proposed rule. Some agencies use webcasts and interactive Internet sessions to acquire more diverse input, a procedure many regard as democratic.

Congressional Responsibility in Rule Making

How responsible is Congress once the agency is operational and how much do they leave to the executive branch? To what extent does the process of handing off this responsibility undermine accountability to citizen-voters' desires on these issues? Scholars Justin Fox and Stuart Jordan have examined the degree to which politically elected Congress members choose to delegate authority to the

bureaucracy. They found that for elected Congress members, three conditions must exist for a noticeable increase of this delegation of authority.

- Politicians must have access to much more information, and more technical information, than voters about the issue and bureaucratic actions.
- The bureaucrats must be policy experts, highly reliable and knowledgeable so they can support decisions presumed to be harmful to politicians' constituents.
- Politicians' electoral motives must be circumscribed to their policy motives. In other words, they care about fixing the problem more than they care about their personal approval rating.

Scholars differ, however, on how much Congress delegates discretionary authority to the bureaucracy and what effects this has. Politicians see pros and cons to the level of discretionary authority they might extend. Congress members may see a need to enact unpopular regulations, while they do not want the blame for the particulars of that regulation. For example, they might prefer bureaucrats to determine and administer fines to citizens for unpaid back taxes or closing a local factory for one too many safety violations. Being able to point to the bureaucracy for such a harsh policy might divert some resentment at election time.

Implementing the Law

Depending on its discretionary authority, any executive branch agency may have the power to make decisions and to take, or not take, a course of action. Congress has given the executive branch significant authority in three ways, by (1) creating agencies to pay subsidies to groups, such as farmers or Social Security recipients; (2) creating a system to distribute federal dollars going to the states, such as grant programs (see Topic 1.7); (3) and giving many federal offices the ability to devise and enforce regulations for various industries or issues. This quasi-legislative power enables departments and agencies to determine law. For example, the Federal Communications Commission can identify what is indecent for televised broadcasts and the EPA can define factory emission standards.

Due to the complexity of final rules or regulations, agencies are required to publish information about what is being implemented. This information will often consist of an introduction and official summary of the societal problem(s) and the regulatory goal that justifies the rule is required. The agency must identify its legal authority to create and enforce such a rule and publish the regulatory text in full. All new regulations must also list an effective date. Most finalized regulations must allow for a grace period, usually 30 days, sometimes as long as 180, before they can go into effect. A final printing of the law is placed in the U.S. **Code of Federal Regulations**. The ***Federal Register*** prints the record of how the regulation started, how it was developed, and how it landed in its final form. The Code more cleanly arranges the final regulation or law.

Independent Regulatory Agencies

Independent regulatory agencies and commissions have unique charges from Congress to enforce or regulate industry-specific law. These entities can create industry-specific regulations and issue fines and other punishments. Some are structured with a director and assistants, and some are headed by a board or commission led by a chairperson, such as the Federal Elections Commission. Members of these boards and commissions have staggered terms to ensure that a president cannot completely replace them with his own chosen appointees. Directors of such groups are appointed by a president but cannot be easily removed. In fact, a president can only remove these executives if the president shows cause.

The president might recommend or work with a regulatory agency in designing new rules but probably has less influence on them than other departments and agencies. He would certainly have less influence on the implementation and enforcement of such rules.

EXAMPLES OF DISCRETIONARY AUTHORITY IN SELECT DEPARTMENTS AND AGENCIES	
Homeland Security	Allowing certain exemptions for immigrants
Transportation	Determining which highway projects get special grants
Veterans Affairs	Deciding how to administer a health program for veterans
Education	Cancelling or lowering student debt
Environmental Protection Agency	Intervening in state environmental issues
Federal Election Commission	Administering and enforcing federal campaign finance laws
Securities and Exchange Commission	Determining if financial firms should be disqualified from raising money because of illegal conduct

Perhaps more familiar are the rules established by the Transportation Security Administration, the agency in the Department of Homeland Security that monitors passengers boarding airplanes. Who will be searched and how? These procedures change from time to time as the government finds new reasons to ban certain items from flights or to soften an overly strict list. The chief lawmaking body, Congress, with its complex lawmaking procedures and necessary debates, cannot keep up with the day-to-day changes in policies and procedures so it entrusts the TSA to monitor the airlines and empowers it to make rules to keep passengers safe.

The powers delegated to these regulatory agencies can change over time. The powers of the Federal Election Commission have been under fire recently. The authority of the FEC has been in question since the *Citizens United v. FEC* (2010) and *McCutcheon v. FEC* (2014) decisions opened up campaign contributions. Many argue that the agency still has the rule-making power to

tighten up the regulations on campaign finance even after the Court's decisions, but weak leadership has stymied any efforts. Additionally, the 2019 resignation of another member of the Commission has left the agency short of the required four-person quorum. Until a new appointee is approved, the Federal Election Commission cannot perform some important functions, such as issuing fines for violations, conducting audits, or initiating investigations.



THINK AS A POLITICAL SCIENTIST: *DESCRIBE POLITICAL INSTITUTIONS IN CONTEXT*

The bureaucracy is an institution that is often considered the fourth branch of government. It has grown to become a very large and vital part of the government, yet the word “bureaucracy” doesn’t appear in the Constitution. The ability for Congress to create bureaucratic agencies comes from Article I of the Constitution. Congress delegates the authority to these agencies to make and implement rules and policy.

Practice: Read the mission statements of these bureaucratic agencies found on their websites and answer the questions that follow.

Department of Transportation (1966): Ensure our nation has the safest, most efficient and modern transportation system in the world; that improves the quality of life for all American people and communities, from rural to urban, and increases the productivity and competitiveness of American workers and businesses.

Department of Veterans Affairs (1989): To fulfill President Lincoln’s promise “To care for him who shall have borne the battle, and for his widow, and his orphan” by serving and honoring the men and women who are America’s Veterans.

Environmental Protection Agency (1970): The mission of EPA is to protect human health and the environment.

Federal Election Commission (1974): The Federal Election Commission (FEC) is the independent regulatory agency charged with administering and enforcing the federal campaign finance law. The FEC has jurisdiction over the financing of campaigns for the U.S. House, Senate, Presidency and the Vice Presidency.

1. Based on the mission statements, explain which of the bureaucratic agencies would seem to wield the most rule-making authority.
2. According to the Administrative Procedures Act, the public has the opportunity to give input in creating bureaucratic regulations. What historical context might have prompted public interest in the creation of these regulations?

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How does the federal bureaucracy use delegated discretionary authority to make and implement rules? On separate paper, complete a chart like the one below.*

Name of the Department, Agency, or Commission	Authority Delegated to the Body

KEY TERMS AND NAMES

Administrative Procedures Act (1946)	Federal Election Commission
Code of Federal Regulations	<i>Federal Register</i>
Department of Education	independent regulatory agencies
delegated discretionary authority	notice-and-comment opportunity
Department of Homeland Security	Department of Veterans Affairs
Department of Transportation	Securities and Exchange Commission
Environmental Protection Agency	

Holding the Bureaucracy Accountable

"Government organizations are especially risk averse because they are caught up in a web of constraints so complex that any change is likely to rouse the ire of some important constituency."

—James Q. Wilson, *What Government Agencies Do and Why They Do It*, 1990

Essential Question: How is the bureaucracy held accountable by congressional oversight and by the president in carrying out goals of the administration?

Congress can legislate federal agencies into existence when they see a need. The legislative branch can also define the organization's role and sets the budget for federal departments. The president is tasked with appointing a leader and ensuring the organization executes its responsibilities. Bureaucratic agencies have to answer to both the executive and legislative branches, a requirement which should lead to an efficiently functioning federal bureaucracy. However, the oversight, or supervision, of two branches, especially during a time of divided government, can cause inefficiency in the bureaucracy. The bureaucracy can, at times, struggle to effectively handle their responsibilities. Nonetheless, despite the popular perception that the bureaucracy is an incompetent, oversized system, most federal functions are completed in an efficient manner through the bureaucracy.

Accountability for the Bureaucracy

Determining who is ultimately responsible for any bureaucratic decision is not always clear. Congress creates the big-picture laws and some of the regulations. The president shapes the departments and agencies when appointing Cabinet secretaries and agency directors who have discretionary authority. Challenges to department directives and agency rulings come in the courts, which may uphold or overrule the executive branch body while interest groups and industry try to influence regulations and their enforcement. With so many players interacting with these executive branch sub-units, it is difficult to tell to whom the bureaus, administrations, and offices are beholden.

Also, in trying to follow prescribed law, these executive branch bodies still face political constraints and challenges despite their discretionary latitude. Cabinet secretaries serve at the pleasure of the president but have to please many people, including, to some degree, their subordinates and staff in the field carrying out the law. These secretaries and their employees report to Congress and thus must please legislative members, especially when it comes to funding.

Congressional Oversight

The bureaucracy's discretion in rule-making authority raises many questions. Does it violate the separation of powers doctrine? How democratic is it for a handful of un-elected experts to create rules that entire industries must follow? Is due process followed when an agency fines an individual or company for violating a policy that no elected representative voted for and on which no American court ruled?

Committee Hearings

Congress has a responsibility to assure that the agencies and departments charged with carrying out the law are in fact doing so and doing so fairly. **Congressional oversight** is essentially a check and balance on the agencies themselves and competes with the president for influence over them. With some regularity, House and Senate committees hold oversight hearings to address agency action, inaction, or their relationship with the agency.

The list of standing House and Senate committees parallels a list of notable agencies. For example, the House Committee on Homeland Security has jurisdiction over the department with the same name. The Senate Committee on Agriculture, Nutrition, and Forestry oversees the National Parks Service, which is part of the Department of the Interior. Committees and subcommittees receive reports from directors and call the directors to testify. Cabinet secretaries, agency directors, and other ranking bureaucrats testify before the relevant committee. Sometimes these are routine and collegial encounters that allow for the agency or department to update Congress on how it is doing, what goals it has accomplished, or what plans it may have. At other times, the committee with oversight jurisdiction will call a hearing to get to the bottom of a thorny issue.



Source: Wikimedia Commons

Nuclear Regulatory Commission (NRC) Chair Allison Macfarlane, far left, and (left to right) Commissioners Kristine Svinicki, William Magwood and William Ostendorf appear before the joint House Energy and Commerce subcommittees on July 24, 2012, to answer questions ranging from commission voting procedures to various aspects of safe disposal of nuclear waste.

Power of the Purse

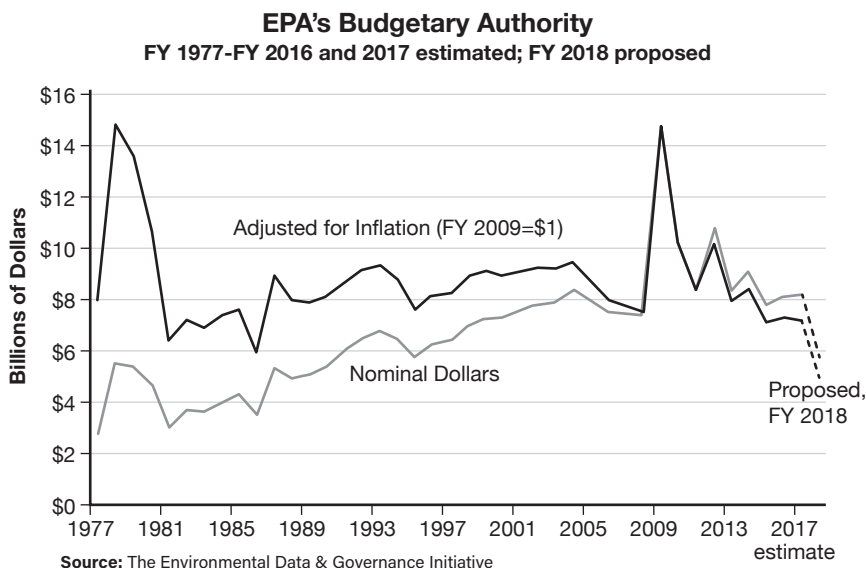
In addition to general oversight, Congress determines how much funding these organizations receive, asks top-level bureaucrats how they can improve their goals, and sometimes tries to constrain agencies. With the **power of the purse**, Congress can determine the financial state of an agency and its success when it allocates money. The agency cannot spend public funds until a committee or subcommittee first passes **authorization of spending** measures. These measures state the maximum amount the agency can spend on certain programs. The distribution of money defined in such an authorization may be a one-time allotment of funds, or it could be a recurring annual allotment. The agency will not receive the actual funds until each house's appropriations committee and the full chamber also approve the spending. These **appropriations**—funds set aside for a certain purpose—are typically made annually as part of the federal budget.



THINK AS A POLITICAL SCIENTIST: EXPLAIN TRENDS IN DATA TO DRAW CONCLUSIONS

Bureaucratic agencies are accountable to the executive branch and legislative branch to carry out their responsibilities. Congress appropriates funds to all the bureaucratic agencies, and by so doing exercises oversight power. If agencies aren't functioning in acceptable ways, Congress can (and the president can propose) lower budgetary allowances. Additionally, Congress and the president can propose to increase an agency's budget in order to meet new or unexpected occurrences. For these reasons, the spending of bureaucratic agencies is carefully monitored. The graph on the next page shows the changing budget for the Environmental Protection Agency (EPA) over a 40-year period.

Practice: Use information in the graph to complete the tasks below.



1. What conclusions can you draw about environmental concerns from the spikes in the EPA's budget in the late 1970s and again around 2010?
2. Regarding the budget for the EPA in the 1980s, what conclusion can you draw from the trend of that decade?

The President and the Bureaucracy

Departments and agencies must compete with others for funding and for the president's ear. Similar departments and agencies have overlapping goals. They all contend that with more money they could better complete their missions.

At the same time, the president exerts authority and influence to make sure their executive ideology is delivered in policy. Through the regulatory review process, administered through the **Office of Information and Regulatory Affairs (OIRA)**, all regulations that have a significant effect on the economy, public health, and other major aspects of policy undergo close review. Any regulations that conflict with the president's agenda may be questioned, revised, and even eliminated. This office is part of the Office of Management and Budget, which prepares the president's annual budget proposal and reviews the budget and programs of the executive departments.

In 2017, during the Trump administration, the Federal Communications Commission rolled back the regulations covering oversight of Internet providers, often referred to as "net neutrality." This rollback lifted regulations from the Obama administration that required cable and telecommunications companies to treat all web traffic equally. The deregulation followed part of President Trump's ideology—as in other areas, he called for the government to reduce regulation on business so that businesses could grow and prosper in a freer marketplace.

Policy Goals and Streamlining The bureaucracy can be either an impediment or a vehicle for fulfilling presidential goals. When the bureaucracy works against or impedes the administration’s ideas and goals, presidents are encouraged to shake up or restructure the system. Presidents have used both their formal powers, such as the power to appoint officials, and their informal powers, such as executive orders and persuasion, to make the bureaucracy work for their executive agenda.

Presidents have also tried to curb bureaucratic waste. President Ronald Reagan, who arrived in Washington in 1981, stated in his inaugural address, “Government is not the solution to our problem; government is the problem.” To gain greater control over departments and agencies, he put people who agreed with the Reagan agenda into top positions. He sought officials who would show loyalty to the White House and reduce administrative personnel.

Policy Challenges

One key aspect of enforcement for government agencies is **compliance monitoring**, making sure the firms and companies that are subject to industry regulations are following those standards and provisions. The Environmental Protection Agency, for example, monitors for compliance in several ways. It assesses and documents compliance, requiring permits for certain activities. It collects measurable scientific evidence by taking water or air samples near a factory to measure the amount of pollutants or emissions coming from the factory. After an EPA decision or ruling, the agency checks whether those subject to the ruling are following it. Officials and regulators of the EPA also go back to the rule writers about the successes or failures of the rules and procedures to either assure fairness in future rules or to tighten them up.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How is the bureaucracy held accountable by congressional oversight and by the president in carrying out goals of the administration? On separate paper, complete a chart like the one below.*

Congressional Oversight of Executive Agencies	Presidential Oversight of Executive Agencies to Ensure Policy Goals

KEY TERMS AND NAMES

appropriations	Office of Information and Regulatory Affairs
authorization of spending	(OIRA)
compliance monitoring	power of the purse
congressional oversight	

Policy and the Branches of Government

"An efficient bureaucracy is the greatest threat to liberty."

—Eugene McCarthy, 1979

Essential Question: To what extent do the branches of government hold the bureaucracy accountable, given the competing interests of Congress, the president, and the federal courts?

"The only thing that saves us from the bureaucracy is inefficiency," Senator Eugene McCarthy (D-MN) continued his statement from above suggesting that if they operated more efficiently, bureaucratic agencies would end up wielding too much power. The branches have to rein in the bureaucracy to maintain accountability, while still attempting to fulfill their responsibilities.

Competing Interests

The federal bureaucracy is enormous, and its day-to-day functions involve thousands of people among hundreds of agencies. Keeping the "fourth branch" working properly and with accountability takes a concerted effort from the other branches.

Congress and the Final Say

Congress and regulatory agencies share a good deal of authority. This sharing has created an unclear area of jurisdiction. One procedure that has developed to sort out any overlap is *committee clearance*. Some congressional committees have secured the authority to review and approve certain agency actions in advance. Few executive branch leaders will ignore the actions the congressional committee requests, knowing the same committee determines its funding.

Congress established the **legislative veto** in the 1930s to control executive agencies. The legislative veto is a requirement that certain agency decisions must wait for a defined period of either 30 or 90 days. During the conflict in Vietnam, for example, Congress used the legislative veto to put some limits on the deployment of military activity. But the public interest groups that had fought to create regulatory agencies in the 1960s watched agencies' lawful decisions being stopped by one or the other house of Congress.

So when the opportunity arose for a case challenging the constitutionality of the legislative veto, Public Citizen, a group advocating for citizen protections and the separation of powers, used its litigation services to eventually bring it before the Supreme Court. The case centered on Jagdish Chadha, born in British-controlled Kenya, who immigrated to the United States in the 1960s to study. When his U.S. visa expired, neither Britain nor Kenya, which had gained independence from Britain in 1963, would accept him, so he applied for permanent residency in the United States. The Immigration and Naturalization Service (INS) approved his application. Two years later, the House rejected it through a legislative veto.

Chadha sued to retain his U.S. residency. Chadha's fight to remain in the United States became a power play between the president and Congress over the constitutionality of the legislative veto. In *INS v. Chadha* (1983), the Supreme Court sided with Chadha and against Congress's use of this procedure. The veto was intended only for the president, not the legislative branch. The Court stated that when the House rejected Chadha's application, it exercised a judicial function by expressing its opinion on the application of a law, something reserved for the courts. The Court ruled against Congress's use of the legislative veto as a violation of separation of powers.

CONGRESSIONAL ACTS AND THE BUREAUCRACY

- **Freedom of Information Act** (1966): Gives the public the right to request access to records or information
- **Sunshine Act** (1976): Requires most federal agencies to hold their meetings in publicly accessible places
- **Whistleblower Protection Act** (1989): Protects federal workers who report or disclose evidence of illegal or improper government action

Competition in the Executive Branch

The different beliefs or approaches of executive departments can create friction between them when the United States must state a position or make a decision. The Departments of State and Defense, for example, have had differences on foreign policy. The Department of State is the diplomatic wing of the government; the Department of Defense trains the military and prepares the country for armed conflict. These differing perspectives can make the development of coherent goals challenging.

Law enforcement agencies sometimes cooperate to find criminals, but they are also protective of their methods and desire recognition for their success in a way that breeds dissension across agencies. The lack of information sharing among the government's many intelligence organizations before the September 11, 2001, terrorist attacks likely increased the terrorists' chances of a successful and unexpected attack.

Sometimes upper-level bureaucrats get caught between their boss and the many people who work for them. The president's policy goals may not take into account some of the practical constraints of the bureaucracy and as a result

may be too difficult to achieve. An appointed bureaucrat may therefore “go native” by siding with his or her own department or agency instead of with the president. Going native is a risky proposition, and many who have publicly disagreed with the president have been replaced.

Federal employees sometimes see corruption or inefficiency in their offices but are tempted to keep quiet. Exposing illegal or improper government activities can lead to reprisals from those in the organization or retaliation that can lead to their termination. However, citizens in a democracy want transparency in government and often encourage such exposure. That is why Congress passed the **Whistleblower Protection Act** in 1989, which prohibits a federal agency from retaliating or threatening an employee for disclosing acts that he or she believes were illegal or dishonest.

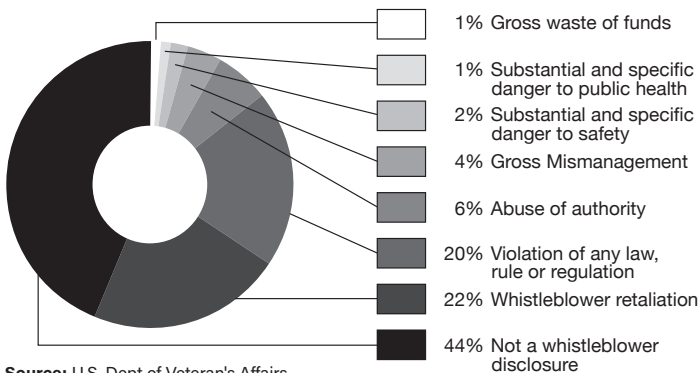


THINK AS A POLITICAL SCIENTIST: EXPLAIN WHAT THE DATA IMPLIES ABOUT POLITICAL PROCESSES

The size of the federal bureaucracy could allow for inefficiency or even corruption. To protect individuals who are willing to expose such problems and create a more transparent process, the government passed the Whistleblower Protection Act. To protect against problems in the Veterans Administration specifically, the Office of Accountability and Whistleblower Protection (OAWP) was formed. OAWP was created by executive order in 2017.

Practice: Analyze the graphic below and answer the questions that follow.

Complaints fielded by the VA Office of Accountability and Whistleblower Protection



Source: U.S. Dept of Veteran's Affairs.

1. What do the data imply about the complaints that the Office of Accountability and Whistleblower Protection receives?
2. What inferences can you make about either the Veterans Administration (VA) or the Office of Accountability and Whistleblower Protection based on the data in the graphic?
3. What additional information in the graphic would help make inferences in question 2?

The Courts and the Bureaucracy

Bureaucratic agencies interact with courts in a variety of ways. The implementation of some rules can result in a prosecution of an offender in a criminal trial. Agency fines and punishments can be appealed in federal court. And the U.S. Supreme Court has shaped how Congress can interact with agencies and has generally empowered the agencies with wider latitude to enact their missions—some would say at the expense of democratically developed policy and the rights of industry.

Courts and Accountability The courts are involved when citizens challenge federal bureaucratic decisions. Because agency actions are not always constitutional, fair, or practical, individuals have the right of due process and review of the law. This judicial review, writes one scholar, serves as a “check on lawlessness, a check on administrative agents making choices based on convenient personal or political preferences without substantial concern for matters of inconvenient principle.”

U.S. Circuit Courts of Appeals Most judicial hearings challenging agency decisions and regulatory punishments are looking for a complicated interpretation of a law, its application, or its constitutionality. These are concerns for appeals courts.

For example, when Justin Timberlake accidentally exposed Janet Jackson’s breast during the 2004 Super Bowl halftime show on a live CBS television broadcast, the Federal Communications Commission took action because of concerns that broadcast decency rules had been violated. The FCC punished Viacom, the CBS parent company, the standard fine for indecency of this type, \$27,500, multiplied by the number of affiliates that broadcast the Super Bowl halftime show. It added up to \$550,000. The network’s lawyers challenged the ruling in the Third Circuit Court of Appeals. The federal court overruled the FCC and sided with CBS-Viacom.

The Supreme Court simply doesn’t take many cases when appealed from the circuit courts, so the Courts of Appeals have largely become the final arbiter of agency decisions. These court decisions, and most of the rare cases the Supreme Court hears, tend to uphold the idea that unless agency discretion is blatantly unlawful or abusive, deference should go to the agency. The fundamental support for this approach is that the people’s branch—Congress—has enabled the agency and that the bureaucrats making the decisions are experts in the field. And when federal courts examine these disputes, they focus more on the decision-making procedures than the substance of the rules or decisions.

Trends in Bureaucratic Authority Appeals courts are more likely to protect and uphold independent commission’s decisions than general executive branch department and agency decisions. One study found that lower federal courts uphold the commission’s decisions and punishments about 76 percent of the time. Another found the Supreme Court upheld challenges to these executive branch decisions 91 percent of the time.

When Congress bestows power on an entity it creates but has perhaps failed to explicitly define scenarios or rulings that the agency might make, the Court recommends erring on the side of the bureaucracy. The preeminent case that governs this approach is *Chevron v. National Resources Defense Council* (NRDC), decided in 1984. The case pitted Chevron Oil against an environmental protection group. But the real question was to what degree an agency can set industry standards when the law governing that power is incomplete or vague.

The Clean Air Act of 1970 required states to create permit programs for any new or modified plants that might affect air pollution. The EPA passed a regulation that grouped these plants into a geographic bubble-area for pollution measurement, creating the possibility that some plants would not need a permit if the modification would not affect their overall impact on the defined bubble. The NRDC challenged the EPA procedure in order to protect the air. The District of Columbia Circuit Court of Appeals set aside the EPA regulation, and Chevron appealed.

The Supreme Court overruled the DC Circuit Court and established the Chevron doctrine under which courts are supposed to defer to agencies when laws defining their responsibilities are vague or ambiguous. Under the *Chevron* concept, called the *Chevron deference*, agencies can not only determine what the law is, but they can also change that interpretation at any time.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *To what extent do the branches of government hold the bureaucracy accountable, given the competing interests of Congress, the president, and the federal courts? On separate paper, complete a chart like the one below.*

Competing Interests of Congress and the Bureaucracy	Executive Branch Competition with the Bureaucracy	Judicial Checks of the Bureaucracy

KEY TERMS AND NAMES

Administrative Procedures Act (1946)
legislative veto

Whistleblower Protection Act (1989)

Chapter 7 Review:

Learning Objectives and Key Terms

TOPIC 2.12: Explain how the bureaucracy carries out the responsibilities of the federal government. (PMI-2.A)	
Tasks Performed by the Bureaucracy (PMI-2.A.1) bureaucracy compliance monitoring iron triangle issue networks	Effectiveness of the Bureaucracy (PMI-2.A.2) Civil Service Commission Civil Service Reform Act (1978) merit system National Performance Review Office of Personnel Management patronage Pendleton Civil Service Act (1883) spoils system
TOPIC 2.13: Explain how the federal bureaucracy uses delegated discretionary authority for rule making and implementation. (PMI-2.B)	
Discretionary and Rule-Making Authority (PMI-2.B.1) Administrative Procedures Act (1946) Code of Federal Regulations Department of Education delegated discretionary authority Department of Homeland Security Department of Transportation Securities and Exchange Commission	
Federal Election Commission <i>Federal Register</i> independent regulatory agencies notice and comment opportunity Department of Veterans Affairs Environmental Protection Agency	
TOPIC 2.14: Explain how Congress uses its oversight power in its relationship with the executive branch. (PMI-2.C)	
TOPIC 2.14: Explain how the president ensures that executive agencies and departments carry out their responsibilities in concert with the goals of the administration. (PMI-2.D)	
Oversight of the Bureaucracy (PMI-2.C.1 & 2) appropriations authorization of spending congressional oversight power of the purse	Bureaucracy and Policy Goals (PMI-2.D.1 & 2) Office of Information and Regulatory Affairs (OIRA) compliance monitoring
TOPIC 2.15: Explain the extent to which governmental branches can hold the bureaucracy accountable, given the competing interests of Congress, the president, and the federal courts. (PMI-2.E)	
Maintaining Bureaucratic Accountability (PMI-2.E.1) Administrative Procedures Act (1946) legislative veto	
Whistleblower Protection Act (1989)	

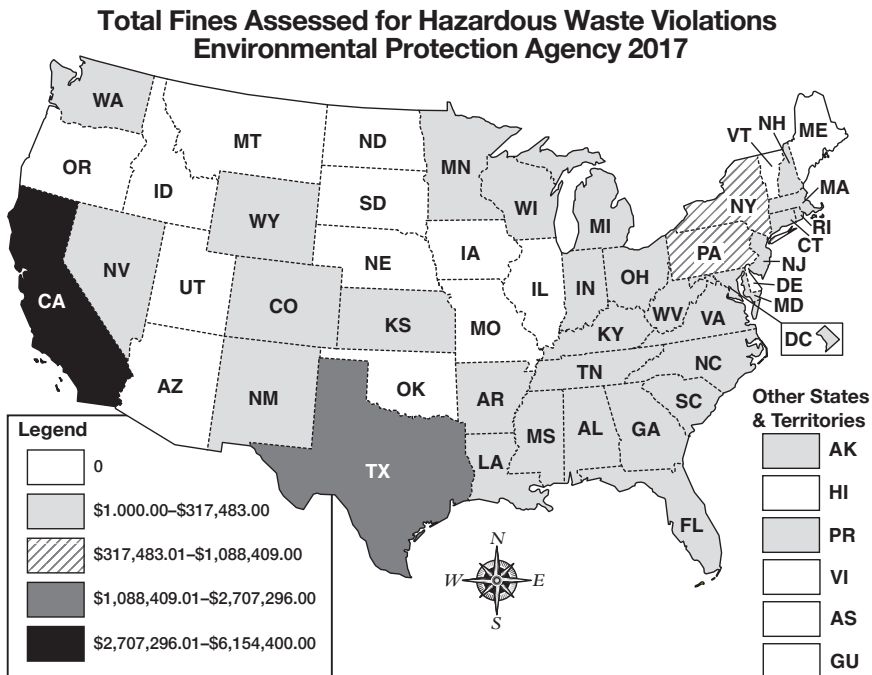
CHAPTER 7 Checkpoint: The Bureaucracy

Topics 2.12–2.15

MULTIPLE-CHOICE QUESTIONS

1. Which of the following is the best example of two points of an iron triangle at work?
 - (A) A White House staffer talks to a journalist about a particular federal program.
 - (B) An FBI director testifies before a House committee on federal arrests and prosecutions.
 - (C) An academic researcher asks a magazine to publish her findings on pollution.
 - (D) A senator meets with the president to discuss the failures of a new federal agency.

Questions 2 and 3 refer to the map below



Source: Environmental Protection Agency

2. What does the data in the map reveal?
- (A) Some states are exempt from monitoring and fines from the EPA.
 - (B) The EPA fined more hazardous waste violators in the southeastern states than in any other states.
 - (C) The EPA issued fines to every state.
 - (D) Most states received fines totaling more than \$1,088,409.01.
3. Which of the following is likely to result based on the information in the map?
- (A) The EPA director will likely ask Congress for more funding to pay these fines.
 - (B) Congress members from the states without fines would insist on talking to the EPA about the issue more than other members.
 - (C) Congressional delegations from states who were heavily fined might introduce legislation to rollback restrictions on hazardous waste disposal.
 - (D) The power of the purse enables the EPA to fine these hazardous waste facilities.
4. Which of the following is an example of a constitutional check against the bureaucracy?
- (A) The president fires and replaces heads of departments or agencies.
 - (B) Congress overrides a bureaucratic ruling with a two-thirds vote.
 - (C) Congress votes to reduce a bureaucratic agency's budget.
 - (D) The president overturns a regulatory agency ruling in a signing statement.

Questions 5 and 6 refer to the passage below.

[W]e find that the licensees of the CBS Network Stations . . . aired program material . . . during the halftime entertainment show of the National Football League's Super Bowl XXXVIII, that apparently violates the federal restrictions regarding the broadcast of indecent material. Based upon our review of the facts and circumstances of this case, Viacom Inc. ("Viacom"), as the licensee or ultimate parent of the licensees of the Viacom Stations, is apparently liable for a monetary forfeiture in the aggregate amount of Five Hundred Fifty Thousand Dollars (\$550,000.00), which represents the statutory maximum of \$27,500 for each Viacom Station that broadcast the material.

—Federal Communications Commission, Notice of

5. Which of the following statements best describe the actions of the Federal Communications Commission (FCC)?
 - (A) The FCC is overturning a fine because the First Amendment protects broadcasts.
 - (B) The FCC is fining Viacom because one of its companies violated broadcast regulations.
 - (C) The FCC is punishing Viacom and CBS, but an appeals court determined the amount of the fines.
 - (D) The FCC does not require television broadcasters to be responsible for what performers do on their broadcasts.
6. If Viacom disagrees with this notice, what is the most likely step it will take?
 - (A) Appeal the ruling to the appropriate Circuit Court of Appeals
 - (B) Contribute to congressional candidates who will vote against the ruling
 - (C) Convince its viewers to ask their Congress members to overrule the decision
 - (D) Pressure the president to fire the chair of the FCC

FREE-RESPONSE QUESTIONS

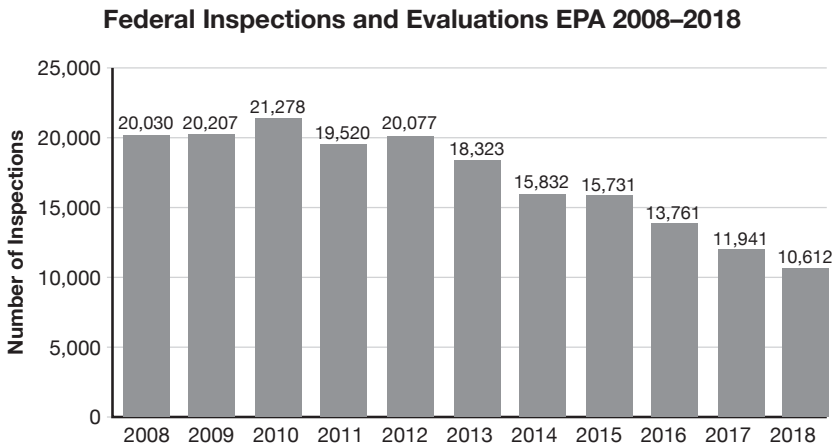
Concept Application

1. “Today our Nation must once again reorganize our Government to protect against an often-invisible enemy, an enemy that hides in the shadows and an enemy that can strike with many different types of weapons. . . Immediately after last fall’s attack, I . . . [acted] to determine if the current structure allows us to meet the threats of today while preparing for the unknown threats of tomorrow. After careful study of the current structure, coupled with the experience gained since September 11 and new [understandings] have concluded that our Nation needs a more unified homeland security structure . . . I propose to create a new Department of Homeland Security by substantially transforming the current confusing patchwork of government activities into a single department whose primary mission is to secure our homeland.”

After reading the scenario on the previous page, respond to A, B, and C below:

- (A) Identify the informal power that the president is using in the excerpt.
- (B) In the context of the scenario, explain how checks and balances could affect how Congress responds to the informal power exercised in part A.
- (C) In the context of the scenario, describe how the creation of the Department of Homeland Security will enable the president to carry out the responsibilities of the federal government.

Quantitative Analysis



2. Use the information graphic above to answer the questions below
- (A) Identify the year with the fewest total number of Environmental Protection Agency inspections and evaluations.
 - (B) Describe a trend in the number of annual EPA inspections and evaluations.
 - (C) Explain how the trend might reveal the EPA's approach to implementing policy.
 - (D) Explain how interactions between the president and Congress impacts this trend.

UNIT 2: Review

Our national institutions govern the United States through constitutional designs, historic customs, and practical relationships. Congress's bicameral setup provides an additional check within the legislature to assure the legitimacy and popularity of most legislation. The many committees in the House and Senate determine particulars of our national laws and handle the day-to-day business on Capitol Hill. Congress has become less a white man's institution and more a democratic and inclusive body with the Seventeenth Amendment, the one-person, one-vote rule, and legislative measures such as the discharge petition and the decreased threshold to break a filibuster.

The Executive Branch carries out Congress's laws. Presidents have become stronger with increased media attention, international face-offs, and their handling of domestic crises. The president is the chief executive of government and the chief of military and foreign policy as well as a manager of the nation's funds. Able and experienced advisors help the president develop policies and manage large departments and agencies. These sub-units range from the mammoth Department of Defense to the Federal Communications Commission.

The Judiciary adjudicates federal crimes and high-dollar civil disputes between citizens of different states. The Circuit Courts hear appeals and interpret law in their respective circuits. Special legislative courts hear cases dealing with specialized areas of law. The less visible, nine-judge Supreme Court hears about 80 cases a year to rule on constitutionality and national policy. Together these institutions govern the United States.

MULTIPLE-CHOICE QUESTIONS

1. Which of the following is the best explanation of congressional oversight?
 - (A) Congress opens a legislative session on a legally scheduled day
 - (B) Congress oversees the executive branch's implementation of policy
 - (C) Congress oversees the management of a national election
 - (D) Congress members monitor the well-being of their district

Questions 2 and 3 refer to the passage below.

The Secretary of Defense is in essence the deputy Commander in Chief. Just like the President, the Secretary of Defense must be prepared to carry out his military command responsibilities for 24 hours a day . . . I believe personally that [Secretary of Defense nominee] Senator [John] Tower has had a serious drinking problem . . . Standards must be set from the top down. If we want the sergeant at his post on the demilitarized zone in Korea, or the lieutenant standing alert with her SAC refueling tanker in the Midwest, to meet the high standards asked of those who wear our nation's uniform, we must make that clear here in the United States Senate.

—Senator Sam Nunn (D-GA), Senate Floor, 1989

2. Which of the following statements best reflects the author's primary claim?
- (A) The president's nominee is unfit for the office.
 - (B) The United States lacks alertness in the armed forces.
 - (C) The United States military needs to mobilize in several locations.
 - (D) The actions of the president's party have caused his vote against the nominee.
3. What are the likely effects of the speaker's statement?
- (A) This Senator will choose the replacement for this appointee.
 - (B) This Cabinet nominee will be confirmed by the Senate.
 - (C) Senator Nunn will likely vote for the Secretary of Defense nominee.
 - (D) Presidents will be more selective in appointing Cabinet positions.
4. Which of the following is an accurate comparison of executive orders and executive agreements?

	Executive Orders	Executive Agreement
(A)	Executive orders are not permitted by the U.S. Constitution.	Executive agreements may only be executed with other democracies.
(B)	A president can issue an executive order to overturn a prior president's executive order.	The Senate must approve executive agreements before they can go into effect.
(C)	Because of their lack of popularity, most presidents do not issue executive orders.	Executive agreements can be vetoed by Congress.
(D)	Executive orders must fall within the president's Article II powers.	Executive agreements can be reached more quickly than treaties.

5. A senator realizes that a Senate vote on an immigration bill is coming up. The senator examines public opinion polls on the issue and carefully reads her inbox for constituents' views on the bill and the issue. This senator is following which model of representation?
(A) Trustee
(B) Politico
(C) Delegate
(D) Partisan
6. Which of the following may Congress do in order to limit the president's power?
(A) Refuse to spend money that the president has appropriated
(B) Raise taxes on the president's supporters
(C) Name new Cabinet secretaries that differ politically from the president
(D) Override a presidential veto with a two-thirds vote

Questions 7 and 8 refer to the infographic below.



Source: TSA.gov

7. Which of the following can you conclude from the data in the infographic?
- (A) Guns in airports is only a problem in 10 major airports.
 - (B) Gun violence in airports is on the rise.
 - (C) The majority of guns found in airports are unloaded.
 - (D) Most guns discovered were fully functioning weapons.
8. What will likely result from the Transportation Security Administration's (TSA) released data?
- (A) Constituents will pressure Congress to appropriate more funding to address this issue.
 - (B) The TSA director will petition the Congress to alter gun legislation.
 - (C) Courts will likely overturn convictions related to discovered firearms.
 - (D) The president will shift the TSA director toward different priorities.
9. Which of the following statements is most accurate about congressional reapportionment and redistricting?
- (A) The federal government redraws districts every 10 years after a national census.
 - (B) States losing population will typically keep the same number of districts after a reapportionment.
 - (C) Districts must be drawn so that, within a state, every person's vote is roughly equal to every other person's vote.
 - (D) States with no significant change in overall population do not draw new district lines every ten years.

Questions 10 and 11 refer to the following passage.

The President will be elected to four years and is re-eligible as often as the people of the United States think him worthy of their confidence . . . we must conclude that the permanency of the President's four-year term is less dangerous than a three-year term for the top official in a single state. The President of the United States can be impeached, tried, and, on conviction of bribery, or other high crimes or misdemeanors, removed from office. Afterwards he would be liable to prosecution and punishment in the ordinary course of law.

—Alexander Hamilton, *Federalist No. 69*, 1788

10. Which of the following statements best explains one of the author's claims related to constitutional principles and procedures?
 - (A) A dangerous president is limited by term limits.
 - (B) People are protected from a dangerous president by elections.
 - (C) Congress can imprison the president for crimes.
 - (D) An impeached president will be removed from office.
11. Which of the following methods is the most certain way to override a Supreme Court decision?
 - (A) Passing legislation the Court declared unconstitutional in a slightly different form
 - (B) Appealing the decision to the Circuit Court of Appeals
 - (C) Proposing and ratifying a constitutional amendment that counters the decision
 - (D) Convincing the president to veto the decision in the case
12. A federal law enforcement agency in the Justice Department has been accused of inefficiency and not effectively enforcing the laws. Which action is most likely to follow?
 - (A) The House Judiciary Committee will fire the agency director.
 - (B) The agency director will ask the Ways and Means Committee for more funding.
 - (C) The Senate or House Judiciary Committee will call for an oversight hearing.
 - (D) The agency with jurisdiction will fine the director.

FREE-RESPONSE QUESTIONS

Concept Application

Chief Justice Hughes' letter was written as Congress considered the "court packing" bill.

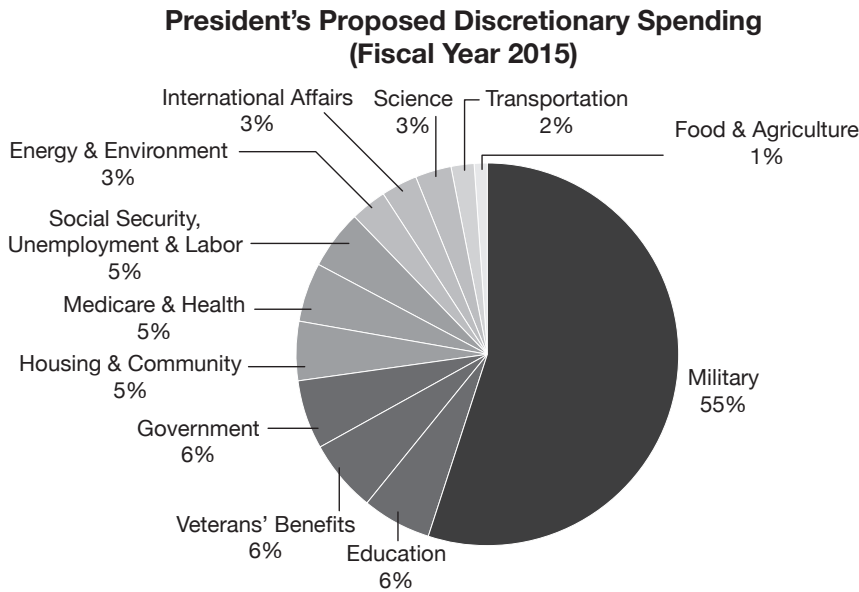
1. "Everyone who has worked in a group knows the necessity of limiting size to obtain efficiency. And this is peculiarly true of a judicial body. It is too much to say that the Supreme Court could not do its work if two more members were added, but I think that the consensus of competent opinion is that it is now large enough . . . There would be more judges to hear, more judges to confer, more judges to discuss, more judges to be convinced and to decide."

—Chief Justice Charles Evans Hughes, letter to Senate
Judiciary Committee, 1937

After reading the scenario above, respond to A, B, and C below:

- (A) Describe the proposed legislation by President Franklin Roosevelt that prompted the author's response.
- (B) In the context of this scenario, describe how judicial independence led to the proposed legislation in part A,
- (C) Explain how the proposed legislation may have altered U.S. policy.

Quantitative Analysis



Source: nationalpriorities.org

2. Use the information graphic to answer the questions.
- (A) Identify the largest and the smallest areas of federal spending.
 - (B) Describe a similarity or difference in federal discretionary spending.
 - (C) Draw a conclusion about that similarity or difference.
 - (D) Explain a constitutional process or principle that impacts the federal budget.

SCOTUS Comparison

3. In January 2017, President Donald Trump issued an executive order to prevent visitors from seven predominantly Muslim countries categorized as having a heightened terror risk from entering the United States for a 90-day period. The state of Hawaii challenged the constitutionality of Trump's order in court. The president revoked his order but in September 2017 issued a similar, revised proclamation. Hawaii filed suit again and argued that the president did not have authority under Article II or from congressional statute to ban travelers from the listed countries. It also argued that the order was overbroad, and that, in targeting Muslims, it violated the establishment clause. Hawaii won its claim in the lower courts. The president appealed and the Supreme Court took the case, *Trump v. Hawaii*.

The Supreme Court's first question was whether the courts had the authority to act on Hawaii's claim against the president's action. However, in its ruling, the Court looked past the initial question and found that President Trump's actions did not violate the president's constitutional or statutory authority, and the Court upheld the September 2017 proclamation limiting entry by the banned nationals.

- (A) Identify the legal concern that is common to both *Trump v. Hawaii* (2017) and *Baker v. Carr* (1962).
- (B) Based on the concern identified in part A, explain why the facts of *Baker v. Carr* led to a different holding than the holding in *Hawaii v. Trump*.
- (C) Explain how a presidential administration could use the decision in *Hawaii v. Trump* to further shape United States foreign policy.



WRITE AS A POLITICAL SCIENTIST: ARTICULATE A DEFENSIBLE CLAIM OR THESIS

The claim or thesis statement of an argument essay must 1) respond to the question, 2) be defensible, and 3) establish a line of reasoning.

Response to the Question A strong thesis or claim directly responds to the question. The prompts for the argument essay on the AP® exam will be clearly based on a question. For example, the argument essay prompt might state, “Develop an argument that explains whether term limits for members of Congress would be beneficial or harmful.” Phrasing the prompt as a question will help you focus your response so you can address the prompt directly. In this case, you might ask yourself, “Would term limits for members of Congress be beneficial or harmful?” Posing the prompt as a question will help you develop your position and write the claim or thesis that expresses that position.

Defensible Claim A thesis, or claim, is a nonfactual statement asserted to be true. It is a statement about which people can disagree because it requires an explanation or evaluation. A defensible claim in political science provides logical reasoning to support a position using sound evidence from foundational documents and other primary sources. For example, evidence to support a claim on term limits for members of Congress might include the Constitution, writings of the founders or later political scientists, or statistics and other facts about offices that do have term limits.

Line of Reasoning A thesis or claim also conveys a line of reasoning for the argument that you will use to explain the relationships among pieces of evidence. For example, you might decide that the best way to present your argument on term limits is to *define* and *analyze* the meaning of term limits—describe what the limits may be and explain how term limits demonstrate a political principle, process, or behavior. Another way you might present your argument is as *cause-and-effect*: limiting terms of Congress members (cause) would result in these outcomes (effects). You may also want to make your case by *comparing* the possibility of term limits on Congress to what is known about term limits on the presidency. Yet another way to present your case would be to lay out a *process*: for example, how would the process of using iron triangles and other relationships to forge legislation work if members of Congress had term limits? If you anticipate the line of reasoning your argument will use in your thesis statement or claim, you will help readers know what to expect and follow along as you reason your way through your argument. Using the word “because” as a transition will help move you from your claim to your reasoning. Here are some examples of thesis statements or claims that suggest a line of reasoning:

Definition claim: The very definition of term limits, as analyzed in the following paragraphs, suggests that they also impose restrictions on the democratic right to choose representatives, because citizens who have been satisfied with the representation of their district would be denied the opportunity to choose to continue that representation.

Cause-and-effect claim: Term limits on Congress members would cause serious problems in the process of negotiating competing claims and developing sound legislation, because they would remove experienced lawmakers who have policy expertise and replace them with less experienced legislators

Application: As you complete the argument essay below, work carefully to develop a claim that directly addresses the prompt, that can be defended with solid evidence from foundational documents and other primary sources, and that expresses or suggests the line of reasoning your argument will follow.

For current free-response question samples, check the College Board's website.

Argument Essay

4. The power of the U.S. president has evolved since the New Deal of the 1930s. Develop an argument to explain whether this evolving power has made the presidency a dangerous office.

Use at least one piece of evidence from one of the following foundational documents:

- *Federalist No. 70*
- *Brutus No. 1*
- Article II of the Constitution

In your response, you should do the following:

- Respond to the prompt with a defensible claim or thesis that establishes a line of reasoning.
- Support your claim or thesis with at least TWO pieces of accurate and relevant evidence:
 - ONE piece of evidence must come from one of the foundational documents listed above.
 - A second piece of evidence may come from any other foundational document not used as your first piece of evidence, or it may be from your knowledge of course concepts.
- Use reasoning to explain why your evidence supports your claim or thesis.
- Respond to an opposing or alternative perspective using refutation, concession, or rebuttal.